PART 7
Business precincts



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Part 7.1 General Commercial Controls

7.1.1 Introduction

1. Application of this chapter

This part applies to all Business zoned land being E1 Local Centre, E2 Commercial Centre and MU1 Mixed Use under the *Georges River LEP 2021.*

In the event of any inconsistency between the controls specified in this Part of the DCP and Part 8 Strategic Centres, the specific requirements identified within Part 8 of this DCP shall prevail.

7.1.2 Built Form

1. Minimum Site Requirements

Objectives

a) Ensure that an appropriate site width is provided to enable the provision and retention of active street frontages.

b) Ensure development sites are of sufficient dimensions to accommodate high quality development.

Controls

1. A minimum street frontage of 27m is required for new developments taller than 3 storeys to ensure the provision of an active street frontage is prioritised while allowing for adequate car parking and the provision of essential services.
2. Exceptions to the minimum street frontage will be considered if at least two-thirds of the street frontage is allocated to active uses such as shopfronts and lobby entrances.
3. Utility services and infrastructure are to be consolidated to minimise impacts on the streetscape and pedestrian amenity.

2. Streetscape

Objectives

a) Ensure that the scale of new development is consistent with the built form envisaged as per the applicable Character Statements for the Centre (refer to Section 7.2 of this DCP).

b) Achieve appropriately scaled development.

c) Ensure proposed built form makes a positive contribution to the streetscape.

d) Allow for high quality building design and unique architectural features.

e) Ensure built form provides adequate amenity for occupants in terms of solar access and natural ventilation.

f) Enhance the pedestrian amenity by prioritising active and walkable streets.

Controls

1. Built form must be consistent with the Character Statement for the centre and result in a high quality built form and energy efficient architectural design where applicable (refer to Section 7.2 of this DCP or Part 8 Strategic Centres for the Hurstville and Kogarah Strategic Centres). If the centre does not have a character statement the new infill development is to respect and maintain consistency with the established rhythm and scale of existing shopfronts.
2. Blank walls are to be avoided adjoining principle streets and the public domain. If they are unavoidable amelioration measures such as artwork or landscaping is required to enhance the visual amenity and reduce vandalism.
3. Buildings must have a consistent street wall height and provide a continuous street frontage and awning height along the street frontage where appropriate.
4. Parapets are to be utilised for the consistency of street frontage and screening of unattractive roof structures.
5. Pedestrian amenity is to be addressed through the provision of continuous awnings for weather protection.
6. Site and design vehicular access (driveways, parking facilities, service access and garages) away from the main street frontage, from rear lanes or secondary streets.
7. In predominantly residential areas, strengthen the interaction between the public and private domain by providing multiple entrances for large developments, locate shops where they will be most visible and minimise the vehicular entrance width.
8. Pedestrian entries on active street frontages must have a finished surface level at the site boundary that is level with the public footpath.
9. Buildings are to be sited on the street frontages at corners, addressing the corner with splays, curves, building entries and other special architectural elements.
10. The design of window and balcony openings should take into account: streetscape, orientation, privacy and outlook.
11. Sub-stations, fire booster assemblies and waste bin storage structures need to be integrated into the development and identified at the DA stage. Lift over runs and plant equipment should be concealed within well designed roofs.
12. Roofs are to be designed to generate a visually appealing skyline – bulky designs are to be avoided.
13. Roof fixtures (such as roof vents, chimneys, aerials, solar collectors, mobile phone transmitters, satellite dishes) are to be inconspicuously located so as not to be visible from the street (including side streets).
14. Television antennae are to be located within the roof space.

15. Design large projections, shade structures and pavilions to enhance the appearance of flat roofed buildings.

3. Setbacks

Objectives

a) Provide new development that spatially defines streets with well-articulated facades.

b) Define street edge at the ground and lower levels of the retail and commercial areas.

c) Reduce bulk, ensure adequate exposure to sunlight and ventilation, and create the opportunity for visual and acoustic privacy at the upper levels of mixed use buildings.

d) Enable mixed use buildings with a residential component to be situated with adequate open space/balconies.

e) Create cohesive streetscapes with consistent building alignments particularly at ground level.

f) Ensure well-proportioned built forms that minimise the appearance of building bulk from the public domain to respect the human scale at street level.

Controls

1. Buildings adjacent to public roads are generally to align with and be built to the street frontage to provide continuity in the streetscape and encourage active frontages to ground level.
2. Street setbacks at ground level are permitted only:
    a. Where the existing footpath is narrow and the provision of additional pedestrian space is desirable.
    b. Where the established pattern is setback (for example where there are residential buildings within the locality).
    c. Where the setback enables or enhances visual appreciations of adjacent heritage items.
3. In order to maintain the continuity of active frontages, side setbacks are generally not permitted unless specified in the precinct controls.
4. Setbacks and building separations to be in accordance with the prevailing setbacks in the streets and/or the requirements of the NSW Government's Apartment Design Guide (ADG).
5. Provide appropriate transition between new development and existing development in lower density areas by reducing building height at the interface. The side and rear setbacks in this case generally are to be:
    a. Minimum 9m from the boundary between ground level and up to four storeys.

b. Upper level setbacks are to be 12m above four storeys.

6. Setbacks on corner blocks are to enable sufficient sightlines for traffic in accordance with the relevant Australian Standards.

7. Where existing buildings are setback behind the street boundary, and the space adds to the quality of the streetscape, new development shall maintain the established street setback.

8. Where there is no prevailing front setback pattern, the following setbacks are to be provided:

   a. For sites with a frontage to a State and/or Regional Road (refer to **Appendix 5** for Road Classifications), the following controls apply:

      i. The street wall height is not to exceed four (4) storeys.

      ii. Above four storeys, the front setback of the upper building levels is to be increased to a minimum of 8m to the street. The minimum 8m setback also applies to balconies, terraces, and balustrades and must be accommodated behind the setback.

   b. For sites with a frontage to a local street, the following controls apply:

      i. The street wall height is to maintain the existing dominant street wall height, which is generally two (2) storeys.

      ii. Up to a building height of four storeys, a minimum front setback of 5m is to be provided.

      iii. Corner sites: up to a building height of four storeys, a minimum front setback of 5m to both street frontages is to be provided.

      Above four storeys, the front setback of the upper building levels is to be increased to a minimum of 8m to the street. The minimum 8m setback also applies to balconies, terraces, and balustrades and must be accommodated behind the setback.

9. Setbacks may need to be increased to maintain the required levels of solar access to adjoining development or where the site is in the vicinity of a Heritage Item to provide an appropriate buffer or curtilage to the Heritage Item.

4. Building Height and Interface

Objectives

a) Limit the height and scale of buildings to prevent a dominant streetscape.

b) Ensure that developments complement the scale, massing and design of adjoining development.

c) Enable buildings to achieve an acceptable level of daylight and sunlight access.

d) Ensure development poses a minimal impact on neighbouring properties, in terms of potential view loss, privacy loss, overshadowing and visual intrusion.

Controls

1. Maximum Height of Buildings is contained within clause 4.3 and the associated Height of Buildings Map in GRLEP 2021.
2. New buildings are also to consider and respond to the predominant and characteristic height of buildings within the relevant centre; as well as consider the topography and shape of the site itself and any adjacent residential interface.
3. Maximum storeys for heights are outlined in **Appendix 6**.

7.1.3 Design

1. Design Excellence

The *Georges River LEP 2021* aims to create a highly liveable urban place, through promotion of design excellence in all elements of the built environment and public domain. This objective is supported by *Clause 6.10 Design Excellence* of the LEP.

Objectives

a) Provide innovative design controls that positively respond to and complement the character of the Commercial Centres;

b) Create a highly liveable urban place, through promotion of design excellence in all elements of the built environment and public domain; and

c) Protect the visual privacy and amenity of adjoining land uses (i.e. residential).

Controls

1. Compliance with Clause 6.10 of the *GRLEP 2021*. The Development Application must identify, through a design statement, how design excellence will be achieved in the proposed development. The design statement must include drawings and examples of the building features, textures, materials, finishes and colours and how they are suitable to the subject site and its context.
2. If Clause 6.10 of the *GRLEP 2021* does not apply, the new development is to address the following:
    a. The characteristics of the site and adjoining development by undertaking a thorough site analysis.

b. Utilise innovative design which positively responds to the character and context of its locality.

c. Large areas of flat façade need to be articulated using panels, bay windows, balconies, steps in the façade and changes in texture and colour.

d. Enhance the streetscape character of the locality.

e. Ensure that proposed development is consistent in height and scale with surrounding development.

f. Development is integrated with the surrounding environment by considering pedestrian, bicycle, vehicular and visual links to the street, rear laneways and open spaces.

g. Maintain established setbacks.

h. Design buildings to minimise impacts on neighbours by maintaining appropriate levels of solar access and privacy.

i. Ensure any development utilises materials and finishes which complement the locality.

j. Design for acoustic and visual privacy.

k. Ensure dwellings and open space areas achieve good solar access, and are energy efficient.

l. Ensure building entries address the street and are clearly visible from the street or footpaths.

m. Design development that provides good quality landscaping.

n. Consider the relationship of private open space to the layout of the dwelling.

o. Use design techniques which promote safety and discourage crime; and

p. Encourage active street frontages.

3. All mechanical ventilation, exhaust towers and cooling systems must not be visible from any public space. These elements must not impact on the visual presentation of the building. Care is required in the location of any exhaust vent that may generate smells to ensure effects on the residential amenity are minimised.

2. Building Façades

Objectives

a) Achieve building façades that enhance the character of the street.

b) Achieve buildings with well-designed articulated massing to all façades.

Controls

1. Ensure that the facade clearly expresses a bottom, middle and top component related to the overall proportion of the building.
2. Street intersections are to be addressed with splays, curves, building entries and other special architectural elements.
3. Open grilles or see-through security screens are preferred to shutters, to optimise the openness of windows and any spill lighting of the footpath. Shutters, if provided, must be minimum 65% visually permeable.
4. Blank party walls are to be avoided. Avoid curtain walls, large expanses of glass and large expanses of concrete as these do not create well-articulated and harmonious façades.
5. Express important corners by giving visual prominence to parts of the façade, including changes in articulation, material or colour, roof expression or increased height (where identified in the Locality Controls in Section 7.2 of this DCP or Part 8 Strategic Centres for the Hurstville and Kogarah Strategic Centres).
6. Provide a greater proportion of solid areas to void areas on all façades and incorporate non-reflective materials.
7. Use non-reflective glass or recess glass behind balconies to minimise reflectivity.
8. Windows and openings are to be generally of a vertical character and located within vertical bays.
9. Air-conditioning units/fans/vents/stacks/hoods etc. are to be inconspicuously located so as not to be visible from the shopping street and any other major side street.
10. Large areas of flat surfaces are to be avoided and the following elements are encouraged to provide building articulation:
    a. Entries, bay windows.
    b. Balconies, terraces, French windows, garden walls, verandahs, pergolas, loggias, decks, porches, planters.
    c. External access stairs, external walkways, letter boxes, seats.
    d. Screens, external louvred walls, awnings, shutters, deep reveals, roof overhangs and other architectural elements.

    Note:
    1) Noise attenuation design and appropriate internal planning are encouraged along major roads and transport routes. This may include enclosed balconies.

    2) *Enclosed balconies are included in Gross Floor Area calculations under GRLEP 2021.*
11. Articulation elements must be integral with the building design and should consider the whole building - not just the street façade.
12. Facades are to be ordered and articulated to visually break up the building massing, for example through materials, colour and the design of openings. Large areas of glass curtain walling and blank walls are to be avoided.

13. Private open space elements such as balconies, should be predominantly north, east and west facing, and should be designed to ensure visual and acoustic privacy of occupants and neighbours.

14. Noise mitigation and design considerations for developments adjoining busy roads are to consider the *Department of Planning, Industry and Environment's 'Development Near Rail Corridors and Busy Roads - Interim Guideline'.*

15. To maintain the privacy of adjoining properties to the rear of sites fronting the Princes Highway, balconies along the rear elevations of buildings are to be designed to prevent down viewing onto the adjoining residential properties.

16. Solar protection elements are to be integral with the building design and massing.

17. For Heritage Items and Significant Character Areas:

    a. Council should be consulted early in the development process for sites that involve heritage items or are in the vicinity of a heritage item.

    b. Development is to respond to the requirements for heritage items or significant facades as identified in the commercial locality controls.

    c. New development adjacent to heritage items to make an appropriate transition in scale.

3. Awnings

Objectives

a) Improve pedestrian amenity and usability.

b) Provide weather protection for pedestrian traffic.

c) Encourage active street frontages.

Controls

1. Awnings must be provided continuously and are to be of the same height and design along the shop frontages to provide weather protection for pedestrians.

2. New awnings are to be compatible with the scale of host and adjacent buildings and the architectural features of the host building.

3. Awnings where provided are to be located between the ground and first floors to maximise weather protection. The height of an awning may vary between 3.2m and 4.2m above the footpath. The height of the awning must ensure continuity in appearance with adjacent awnings and to relate to any distinctive features of the building.

4. Under awning lighting is to be provided to improve public safety. The lighting fixtures are to be recessed into the awning. All wiring and conduits are to be concealed.

5. Awnings are to be wrapped around the corners of the main commercial street onto side streets.
6. Awnings on eastern and western facades are to provide sun shading.
7. Awnings are to be flat or near flat in shape (not tilted upwards away from the facade), and opaque in finish. (Avoid steeply pitched awnings which break the general alignment of awnings in the street).
8. Awnings and other weather protection devices are to be stepped in relation to street level changes and building entrances.
9. Reconstruction or renovation of existing awnings must retain any significant fabric, for example pressed metal soffits.

4. Public Domain Interface at ground level

Objectives

a) Provide an attractive ground level interface between the private and public domain.

b) Ensure that all ground level elements of buildings visible from the street make a positive contribution to the public domain.

c) Design building entrances that provide a clear entry to the development that will assist in visitor orientation.

d) Ensure that access to parking does not dominate the streetscape.

e) Ensure that buildings adjacent to civic areas and parks address them.

Controls

1. Development must comply with the Desired Future Character objectives and controls (refer to Section 7.2 of this DCP).
2. Development must be designed so that it has a clearly definable entry and addresses the street.
3. For mixed use development which contains residential dwellings, the primary area of outdoor private open space must not be located on the street frontage, unless it is on the first floor or above.
4. The visual and physical connection between the building frontage and the public domain must be considered in all development applications to ensure that the interface at ground level promotes a high level of pedestrian amenity.
5. Public domain improvement works such as footpath paving, reconstruction of kerb and gutter, landscaping, street trees, amenity area lighting and furniture may be required at the developer's expense.

5. Active Street Frontages

Clause 6.13 – Development in certain business zones in Georges River LEP 2021 requires that residential accommodation or tourist and visitor accommodation is not to be provided on the ground floor of a building that is facing a street, other than any part of that floor used for the purposes of:

a. Lobbies for any commercial, residential, serviced apartment or hotel component of the development;

b. Essential services;

c. Access for fire services; or

d. Vehicular access.

Objectives

a) Promote uses that attract pedestrian traffic along certain ground floor street frontages.

b) Provide an active street edge.

c) Provide opportunities for active uses such as outdoor dining.

d) Improve the safety and amenity of the Business Centres.

Controls

1. Developments must identify landscaping, street paving and furniture and the like along the active street frontage to improve the private and public domain interface at the ground level. Any proposed works in the public domain must be approved by Council and be consistent with the Desired Future Character for the centre.
2. Any outdoor seating must be proposed so as not to compromise pedestrian safety and access or reduce vehicle sight lines. There must be a minimum of 2 metres available on the public footpath (clear of any obstruction) for pedestrian access.
3. Where it is proposed to occupy the Council footpath for outdoor dining, the applicant must obtain development consent, in addition to a lease agreement with Council.
4. Active street frontage where possible must take advantage of public open spaces, and views and vistas to orientate the active uses on the ground floor. (i.e. café outdoor seating must be orientated to parks and open spaces to improve visual amenity for patrons).
5. If the active street frontage adjoins a Heritage Item the setback, design and scale of the active street frontage must complement the Heritage Item.

6. Materials and Finishes

Objectives

a) Ensure the choice of external materials and colour schemes reinforce existing development in the locality.

Controls

1. Building construction is to utilise high quality and durable materials and finishes.
2. Different materials and finishes are to be combined to assist building articulation and modulation.
3. Where the Locality includes a significant facade or streetscape, materials and finishes are to complement the existing streetscape.
4. A large unarticulated expanse of any single material to facades is to be avoided.
5. The reflectivity of building materials must not result in glare to motorists, residents or pedestrians or endanger their safety.

7. Landscaping

Objectives

a) Improve microclimate and solar performance within blocks.

b) Enhance the public domain at the edges of developments.

c) Reduce heat in the urban environment.

Controls

1. Residential setbacks from streets and parks are to support planting, at a scale that allows passive surveillance of the public domain.
2. Appropriate plant species are to be used for screening, ensuring that they do not unreasonably block sunlight and ventilation on neighbouring sites.
3. Ensure that planter boxes are designed to optimise the longevity of plants, through the provision of drainage and irrigation systems.

8. Shop Top Housing

Objectives

a) Encourage a mix of land uses that are compatible with the role and character of the neighbourhood centre.

b) Ensure that the localities continue to provide a range of retail and commercial services with varied active frontages to the street.

c) Encourage a range of uses above ground level that enhance the social and economic environment, and are appropriate to the desired future character of the locality.

d) Provide greater housing choice.

e) Improve access to and promote the use of public transport in the localities.

f) Incorporate a range of small scale business uses at street level with offices and/or residential development above.

Controls

1. The ground floor level of shop top housing development shall comprise active retail/commercial uses facing the street.
2. Levels above ground are to sustain mixed uses, including commercial, professional services, and residential (where permitted).
3. Site and design non-residential and residential land uses in the same development in a manner that will not adversely affect the future operation of those land uses.
4. A direct visual connection is to be provided between footpaths and shops.
5. Wrap shop fronts around corners into side streets to increase the area of active frontage.
6. Design building openings at the ground floor in keeping with the overall proportions.
7. For cafe/dining uses, provide openable frontages in association with seating overlooking the street, to create the experience of outdoor dining. *Note: Applications for outdoor dining must comply with Council's Code for Commercial Use of Public Footways.*
8. Incorporate continuous, independent and barrier free access to ground floor commercial entries, including effective signage, sufficient illumination, tactile ground surface indicators and pathways with limited cross-falls, sufficient width, comfortable seating and slip-resistant floor surfaces.
9. Pedestrian access to upper level uses is preferred from the side street or rear lane. If provided from the main street, openings for access are to be between 1.5m and 3m wide.
10. Clothes drying is only permitted on balconies if it is easily accessible, has a high degree of solar access and adequately screened from public view.

7.1.4 Amenity

1. Visual Privacy

Objectives

a) Ensure new development provides adequate visual privacy within development sites and externally to neighbouring developments during the day and at night.

b) Ensure that the outlook from key rooms within dwellings can be maximised without compromising privacy.

Controls

1. Potential visual privacy impacts are to be mitigated by the following design measures:
    a. Fixed screens of a reasonable density (minimum 75% block out);
    b. Fixed windows with translucent glazing (providing natural ventilation is not compromised);
    c. Appropriate screen planting or planter boxes. *Note: This option is only acceptable where it is demonstrated that the longevity of the screen planting will be guaranteed*.
    d. Windows are to be off-set or splayed; and
    e. Windows with sill heights of 1.8 metres or more above floor level or fixed translucent glazing to any part of a window lower than 1.8 metres above floor level.

2. Acoustic Privacy

Objectives

a) Ensure new development provides adequate acoustic privacy levels internally and externally for neighbouring dwellings and residents of mixed use buildings.

b) Maximise outlook to the public domain whilst maintaining acoustic privacy.

c) Reduce the impact of ambient noise by appropriate landscaping and architectural detailing.

d) Minimise the impact of aircraft and traffic noise on residential accommodation.

Controls

1. Dwellings close to high noise sources such as busy roads, railway lines and airports must be designed to locate noise sensitive rooms and secluded private open spaces away from noise sources and be protected by appropriate noise shielding techniques.
2. Bedrooms of dwellings adjacent to high levels of external noise are to be designed to limit internal noise levels to a maximum of 35dB (A) between 10pm and 7am in accordance with relevant Australian Standards for acoustic control.
3. The introduction of noise abatement measures to achieve compliance with the current AS 2021 must be done in a manner that does not compromise the architectural design of a building or impact on the character of an existing streetscape.
4. All development that is in, or immediately adjacent to, the rail corridor or a busy road must be designed in accordance with NSW Department of Planning 'Development Near Rail Corridors and Busy Roads - Interim Guidelines, December 2008' (DNRCBR 2008).

5. In order to assist acoustic control of airborne noise between units:
    a. A wall shall have a Field Sound Transmission Class (FSTC) of not less than 50 if it separates a sole occupancy unit, or a sole occupancy unit from a plant room, stairway, public corridor, hallway or the like;
    b. A wall separating a bathroom, sanitary compartment, laundry or kitchen in one sole occupancy unit from a habitable room (other than a kitchen) in an adjoining unit, is to have a FSTC of not less than 55;
    c. A floor separating sole occupancy units must not have a FSTC less than 50;
    d. Noise impact associated with goods delivery and garbage collection, particularly early morning, should be minimized;
    e. Restaurants and cafes should be designed to minimise the impact of noise associated with late night operation, on nearby residents.

3. Interface between Business Zones and adjoining land uses

Objectives

a) Address the impact of business zones at their interface with adjoining land uses.

b) Conserve the privacy, solar access and overall amenity of neighbouring properties.

Controls

1. Clear boundaries between the public and private domain must be created to enhance security, privacy and safety.
2. Shadow diagrams must be provided for all development proposals for the summer and winter solstices. Shadow diagrams must show shadow impacts at 9am, 12 noon and 3pm for both solstices. Additional building setbacks may be required where internal site shadow impacts or impacts on adjoining properties are considered by Council to be unreasonable.
3. The design and positioning of all mechanical plant and equipment (i.e. air conditioning units, mechanical ventilation, duct work and exhausts) must be taken into account early on in the design process. The non-residential use must not have a negative influence on residential uses concerning noise or odour.
4. Development will be designed to locate sources of noise such as garbage collection, loading/unloading areas, air conditioning plant/other machinery, and parking areas away from adjoining residential properties and where necessary, be screened by walls or other acoustical treatment.
5. Side and rear boundary setbacks adjacent to a lower density residential zone or heritage item/conservation area for the purposes of visual separation, privacy and transition:
    a. Minimum setback of 9m from the boundary between ground level and up to four storeys.

b. Upper level setbacks are 12m above four storeys.

Note: Private open space and balconies must comply with Part 4E of the NSW State Government's Apartment Design Guide.

6. Encroachments into boundary setbacks:

   a. Ground floor private open space may encroach up to 2m into the 5m front setback leaving a minimum 3m of deep soil area to the street.

   b. Ground floor private open space may encroach up to 3m into the side and rear setbacks leaving a minimum 3m of landscaped buffer.

   c. The setback areas, other than any permitted ground floor private open space, are to be landscaped and be retained as part of the common property of the development.

7. Development of 4 storeys or more in height adjacent to a school are to consider the following:

   a. Mitigation of overshadowing impacts on the school and its grounds through setbacks and controlling bulk and scale of buildings;

   b. Orientating internal spaces so that low occupancy rooms face school property; and

   c. Windows and balconies are to be designed to reduce opportunities for overlooking school grounds.

4. Utility Infrastructure

Objectives

a) Identify utility infrastructure requirements at an early stage of development.

b) Ensure that utility infrastructure are integrated in the site planning and design of development in accordance with specifications for both Council and the utility provider.

c) Improve the visual amenity of the primary street frontage while incorporating utility infrastructure within the development.

d) Ensure services including fire booster valves, substations and other infrastructure do not detract from the streetscape presentation of a building.

Controls

1. All existing and additional utility infrastructure must be identified, and an assessment of whether these services need to be upgraded for the proposed development, at the site planning stage.

2. The location of any substations, fire hydrants along with clearance areas and accessways must be located wholly within the development site, shown on building and landscape plans and maintain the visual amenity of the street.

3. All low voltage distribution and service mains to development must be underground for the full length of the primary frontage both inside and outside the property boundary.

4. Existing overhead service cables and associated infrastructure must be placed underground in accordance with the requirements of the relevant power supply authority. Written confirmation from the relevant power supply authority must be submitted to demonstrate prior arrangements have been made between the applicant and the authority.

5. Where existing street trees are lost as a result of trenching related to undergrounding of cables, a suitable replacement/s must be installed in keeping with Council's *Tree Management Policy*.

6. Where utility infrastructure is proposed on land that is identified as a heritage item or within a heritage conservation area, consideration must be given to the effect of the proposed works on the heritage significance of the heritage item or conservation area.

7. Appropriate street lighting to the relevant standards must be installed at the applicants' cost where removed as part of the undergrounding of existing overhead power lines in accordance with the Council and Energy Australia approved standards.

8. Restoration of the street pavement, verge and footpath must be complementary to the materials and type of construction used in the vicinity, in accordance with Council's specifications.

9. Essential services such as substations and fire booster assemblies must be integrated into the design of the façade and shown on architectural drawings.

Note: Utility infrastructure associated with development includes electricity lines, poles and substations, telephone lines, street lighting, bus shelters and footpath pavements, fire hydrants, gas connections and associated landscape elements.

7.1.5 Shopping Trolley Management Plan

1. A Shopping Trolley Management Plan is to be submitted with any Development Application that seeks approval for a supermarket.

2. The Shopping Trolley Management Plan is to outline in detail how shopping trolleys will be managed on the site.

3. The Plan is to include all aspects of trolley management and should specifically address the following:

    a. How the operator will restrict the movement of shopping trolleys outside the development;

    b. How trolleys will be returned to the trolley bays; and

    c. How it is proposed to manage any shopping trolleys that are taken off site.

7.1.6 Plant Rooms

Objectives

a) Minimise the massing and visual impact of the development.

Controls

1. Plant rooms/ devices, where possible, should be located in the basement or integrated into the building design, or where located on the roof, any plant room should be well setback from all frontages.

7.1.7 Servicing

Objectives

a) Encourage the use of energy efficient building materials.

b) Minimise the negative impact on pedestrian traffic and residential amenity.

c) Ensure that vehicles do not stand on the road, footway or public domain while loading/unloading goods.

Controls

1. New commercial or mixed-use buildings must provide a loading dock on-site. Where this is not viable loading and unloading may be permitted from to a rear lane or side street subject to Council's engineer approval.
2. Loading and unloading areas must be well screened from the public domain and located underground where practical.
3. Service vehicles must enter and leave the loading dock in a forward direction.
4. Delivery and operation of loading docks is to be restricted to the approved trading hours.
5. No garbage collection is permitted between 10pm and 6am.
6. Loading docks must comply with AS 2890/2 (latest edition) - off-street commercial vehicle facilities.
7. The largest delivery vehicle permitted will be restricted to Medium Rigid Vehicle (MRV) as denoted by AS 2890.2. Vehicles larger than MRV may be considered by Council for a large development site with loading and unloading to be carried out on-site only.

7.1.8 Plan of Management

A Plan of Management (POM) allows Council to exercise control over the ongoing operation of a premises by requiring, as a condition of consent, that the premises operate in accordance with the POM. A condition of consent may require that a POM be regularly

revised and submitted to Council.

Objectives

a) Ensure commercial premises operate in the most efficient way without unreasonable amenity impacts on nearby residential land uses.

Controls

1. A POM will be required when a commercial or light industrial use is proposed in proximity of a residential land use and Council considers it may unreasonably impact on the amenity of surrounding residences.

   Note: For the purpose of this control 'in proximity' may include a commercial or light industrial premise adjoining, abutting, adjacent to or contained within the same building as residential land use, or as determined by Council.

2. A POM must provide all details relevant to the operation of the commercial or light industrial premise and will require information on the following:

   - Hours of operation
   - Noise and Vibration
   - Environmental Protection

7.1.9 Site Isolation and Amalgamation

In considering an application for commercial or mixed-use development, Council will consider the impact of the proposed development on adjoining allotments of land that will be left as isolated sites and their impact on future development capacity.

Isolated sites are those sites whose size and locations could significantly limit development as a result of not being included in an adjoining development proposal. In this regard, a property will be considered to be an "isolated site" when it does not form part of an adjoining redevelopment site and will be incapable of satisfying Council's development controls if it was to be redeveloped. The principles of the court case *Karavellas v Sutherland Shire [2004] NSWLEC 587* need to be addressed in the assessment of developments where "isolated sites" will be created.

Note: for development located within the Hurstville and Kogarah strategic centres, refer to Part 8 Strategic Centres of this DCP.

Objectives

a) Encourage site consolidation of allotments for commercial and/or mixed-use development in order to promote the efficient use of land.

b) Avoid the creation of isolated sites.

c) Encourage the development of existing isolated sites in a manner that responds to the site's context and characteristics and that maintains a satisfactory level of amenity.

Controls

1. Development for the purpose of commercial or mixed use development is not to result in the creation of an isolated site that could not be developed in compliance with the relevant planning controls, including the Georges River LEP 2021 and this DCP.
2. Where amalgamation of the isolated site is not proposed, applicants will be required to demonstrate that:
    i. Negotiations between the owners of the properties commenced at an early stage, being prior to the lodgement of the Development Application.
    ii. Where no satisfactory result is achieved in relation to amalgamating the land, the Development Application submission must include evidence of the negotiations with the owners of the adjoining properties. Evidence must include written correspondence between the parties. The submission must include details of the financial offers to such owners. This must be based on the development potential of the combined site, not just the adjoining site if developed independently. Such offers are to be reasonable and are to be based on at least one recent independent valuation prepared by a suitably qualified valuer and include other expenses likely to be incurred by the owner of the potentially isolated site in the process of the sale of the property.
3. Council will request the proponent to fund a second valuation to be undertaken on behalf of the owner of the site that would be isolated as a result of a proposed development. The valuation may be independently reviewed by Council at the applicant's expense.
    i. Where amalgamation of the isolated site is not achieved through negotiations, applicants will be required to demonstrate that an orderly and economically viable development of the isolated site can be achieved. Applicants will be required to prepare a concept design for the isolated site compliant with the Apartment Design Guide or applicable controls in the DCP, and at the same density as proposed in the Development Application, indicating height, setbacks, resultant site coverage (building and basement), sufficient to understand the relationship between the application and the isolated site. The concept design will be required to demonstrate the likely impacts the developments will have on each other, such as solar access, visual and acoustic privacy, the impact of development of the isolated site on the streetscape and the compliance with the required car parking rates. The concept plans will be placed on Council records in order to form the basis for any future development proposals on the isolated site.
    ii. The development of an isolated site is not to detract from the character of the streetscape and is to achieve a satisfactory level of amenity including solar access, visual and acoustic privacy.

Part 7.2 Character Statements for Local Centres

7.2.1 Beverly Hills Local Centre (King Georges Road)



Figure 1: Location Map

Character Statement

Beverly Hills is a well-known entertainment precinct with a high proportion of restaurants and cafes, and is noted for its cinema. This local centre draws on a wide catchment of patrons across southern Sydney and beyond. King Georges Road is the major north south road defining areas east and west, with the Beverly Hills Centre comprising a commercial/retail strip along this road.

The provisions in the DCP for future development along King Georges Road:

- Ensures commercial and retail uses are located at ground level and housing above.
- Requires car parking for new development to be provided underground.
- Limits development in the core commercial area to a maximum of four storeys, with specific sites adjoining residential development restricted to two storeys.
- Facilitates a high amenity for workers and residents in new development through excellent design, solar access, and a consistent street scale.

Desired Future Character

A Master Plan for Beverly Hills Town Centre is being developed to facilitate urban renewal and revitalisation of the centre and surrounding residential area (June 2020). The following controls are taken from Hurstville DCP No.1 (repealed) and will be updated when the Masterplan is endorsed by Council.

Objectives/Future Desired Character

a) Beverly Hills should develop as a high quality commercial and retail centre catering for the needs of the local community and visitors.

b) Create a memorable identity for King Georges Road, as the focus of Beverly Hills, and enhance its atmosphere and commercial viability as a local service centre by:

   i. Fostering an improved mix of uses

   ii. Retaining the important role of public transport

   iii. Enhancing pedestrian amenity

c) Strengthen the quality of Beverly Hills' public open space systems, including public open space in the Centre and parks along drainage lines by:

   i. Encouraging buildings to overlook parks to improve safety

   ii. Orientating commercial uses to public plazas and spaces

d) Protect and enhance the landscape quality of Beverly Hills in both the public and private domain.

e) Ensuring a high standard of architectural, environmental and landscape quality by promoting high quality architectural design throughout Beverly Hills:

   i. Encouraging buildings that optimise sun access to streets and parks

   ii. Protecting the amenity of existing residential areas and parks

   iii. Creating private internal and external environments that achieve a high level of amenity for occupants and neighbours

f) Ensure that new development is compatible with the existing built form and streetscape by:

   Providing direction and certainty of outcome to ensure:

   i. A consistent street scale

   ii. Compatibility with existing built form

   iii. A variety of building types

   iv. A high level of environmental amenity

g) Integrate principles of environmental sustainability in the design of both the public and private domain of Beverly Hills by:

   i. Ensuring that the new dwellings receive adequate sun and ventilation

ii. Requiring the use of materials that maximise energy efficiency

iii. Providing backyards for new residential development to maintain green space corridors throughout the suburb.

Overall Design Principles

1. General

- Provide for commercial and residential development of an appropriate scale and mass.
- Assume optimum lot amalgamation to ensure flexible uses i.e. retail/ commercial/ residential.
- Extend existing public spaces through access and urban design strategies.
- Establish building depth controls to ensure high quality building and external spaces.
- Establish new rear lane widening and easements to improve public amenity and access.
- Emphasise particular characteristics of the different parts of the Centre.
- Integrate new parking strategies with incremental and large-scale developments.
- Improve amenity for users of new and refurbished buildings by requiring a lift in buildings exceeding 2 storeys.

2. Pedestrian and Traffic Amenity

- Improve lane system to provide an alternative pedestrian network to footpaths along King Georges Road and improve traffic flows. Restaurants and retail along King Georges Road to be encouraged to open to both the front and back of a site.

3. Public Space

- Create small parks and squares where possible to enhance amenity for patrons of restaurants and cafes, and shoppers.
- Create a system of public spaces linking the railway station to a square on King Georges Road in the vicinity of the Sydney Water drain, via improvements to the lane between Morgan Street and Frederick Avenue.

4. Landscape and Public Spaces

a) Landscape Quality

- Spacing and siting of residential buildings creates a landscape corridor, which ensures significant trees are retained and the drainage system is rationalised.
- Retain and supplement significant trees on private land, particularly on major ridgelines and drainage lines.

b) Public Landscape Amenity

- Increase recreation opportunities by providing a diverse range of landscape types in public spaces, from urban squares in the main street to passive ‘natural’ spaces and active open spaces in parks.

- Improve connections to public spaces.

c) Drainage Systems

- Integrate stormwater detention systems for new developments into consolidated landscape areas.
- Investigate the potential of upgrading the main drainage line where it passes through private land.

Development Requirements

The development requirements for this Section are provided below.

Controls

1. New development takes the form of one of the options illustrated in the Development Control Drawings – refer to **Figures 2 to 10**.
2. Maximum street frontage for individual commercial sites along King Georges Road is 25m.
3. All ground floor levels in buildings are to incorporate retail and/or commercial uses to activate the street.
4. Access to residential uses above ground floor is permitted on street level but must not occupy more than 20% of the frontage.
5. The maximum retail frontage for individual tenancies is 25 metres.

Height

6. Maximum Height of buildings is contained within Clause 4.3 and the associated Height of Buildings Map of the Georges River LEP 2021.
7. Building Heights and Indicative Storeys in **Appendix 6** of this DCP identifies the maximum number of storeys for development.
8. Commercial storeys are set at a maximum 3.3m floor to ceiling.
9. Residential storeys are set at a maximum 3m and a minimum 2.7m floor to ceiling.

Arcades

10. Arcades should be located in mid-block locations and provide a clear sightline from one end to the other, for surveillance and accessibility.
11. Arcades are to have a minimum width of 3m, clear of any obstruction, except for connections through shops.
12. Retail frontages are to be maximised along arcades.

13. Natural lighting and ventilation of arcades is highly desirable.
14. Pedestrian safety and the security of adjacent businesses, particularly at night, should be considered in the design of through block connections.
15. Public use of through block connections is to be available at least between the hours of 6.00am and 10pm daily.
16. Arcades must have a minimum floor to ceiling height of 4m.

Shopfront

17. Shop fronts must be glazed.
18. Solid roller shutter doors of any kind are not permitted on shop fronts.

Landscaping and open space

19. Lower level rooftop areas and courtyards in the centre of blocks are to be landscaped.
20. A minimum of 600 mm of soil is to be provided above basement structures for landscaping.
21. Courtyards should be integrated into the design of a building to allow solar access and ventilation, particularly for residential uses.
22. Where direct access to ground level private open space is not available, provide at least one balcony, terrace, verandah, or deck for each dwelling.
23. The primary above ground open space area should be accessible from a family room, lounge, dining room or kitchen, and be predominantly north, east or west facing, to ensure it is useable as an outdoor living space.
24. Smaller secondary above ground open space area are also encouraged, such as balconies adjacent bedrooms, screened external clothes drying balconies adjacent laundries and bathrooms.
25. Above ground open space should overlook the street or rear garden to protect the privacy of occupants and neighbours.
26. Street footpaths are to be finished in accordance with Council's requirements.

Vehicular access and parking

27. King Georges Road can not to be used to provide vehicular access to a site.
28. Car parking and loading dock provision is to comply with Section 3.13 - Parking Access and Transport of this DCP.
29. Vehicular access is to be from existing crossings or from rear lanes/streets.
30. Where provided, garage doors are to be recessed a minimum 300mm into the façade of the building.

31. Driveways are to have a minimum width of 3m.
32. Concentrate underground parking areas under building footprints.
33. Locate access ways to underground car parking away from doors or windows to habitable rooms wherever possible.
34. Maximise natural light and ventilation to parking areas where possible.
35. Opportunities for natural ventilation to such car parking should be maximized.
36. All underground car parks are to have security doors.
37. Garage doors to car parking facilities are to be slatted (grill) or incorporate some form of opening, to facilitate natural ventilation and reduce the visual impact of garage doors.
38. Streets should not be presented with car park walls. Parking areas should be unobtrusive.
39. Parking must be located underground but in some situations due to the topography, the walls enclosing the parking may be partially visible. The length and height of the wall must not exceed 1 metre.
40. Natural or mechanical ventilation from the car park cannot be achieved through the use of large metal grilles or large openings.
41. Any visible roofs of parking areas are to be landscaped in order to provide for an outdoor space, as well as to create a pleasant view from the windows above.
42. Driveways to underground car parks should be designed with minimal visual impact on the street, and maximum pedestrian safety.
43. Pedestrian access to basement car parks is to be separated from vehicular access and clearly defined.
44. Access ways to underground car parking should not be located close to doors or windows of habitable rooms.
45. All major developments are to have a loading dock for the delivery of goods.
46. The loading dock is to be located so that the service vehicle stands fully within the site.
47. Doors to loading docks are to be recessed 300 mm behind the face of the wall.

<u>Controls for Particular Areas and Sites</u>

48. Development for land in any of the below locations complies with **Figures 2 to 10 – Control Drawings**:
    - King Georges Road West Side – (excluding 531-533 King Georges Road)
    - King Georges Road East Side
    - King Georges Road North Side (north of the railway line)
    - 178 Stoney Creek Road
    - 531-533 King Georges Road

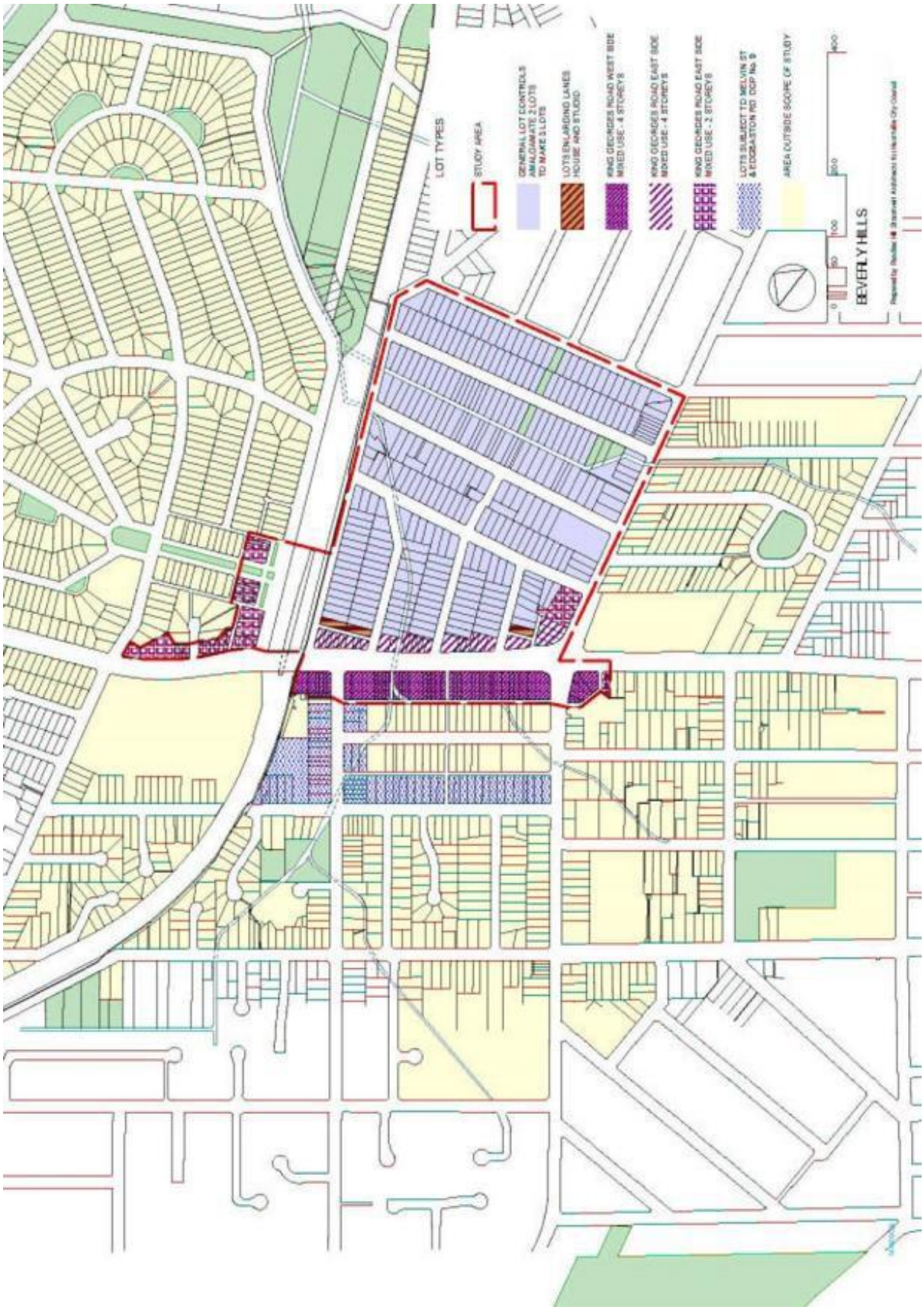


Figure 2: Control drawing 1 *Note: Diagram controls apply to E1 zone only. For residential controls refer to Part 6 – Residential Controls of this DCP.*

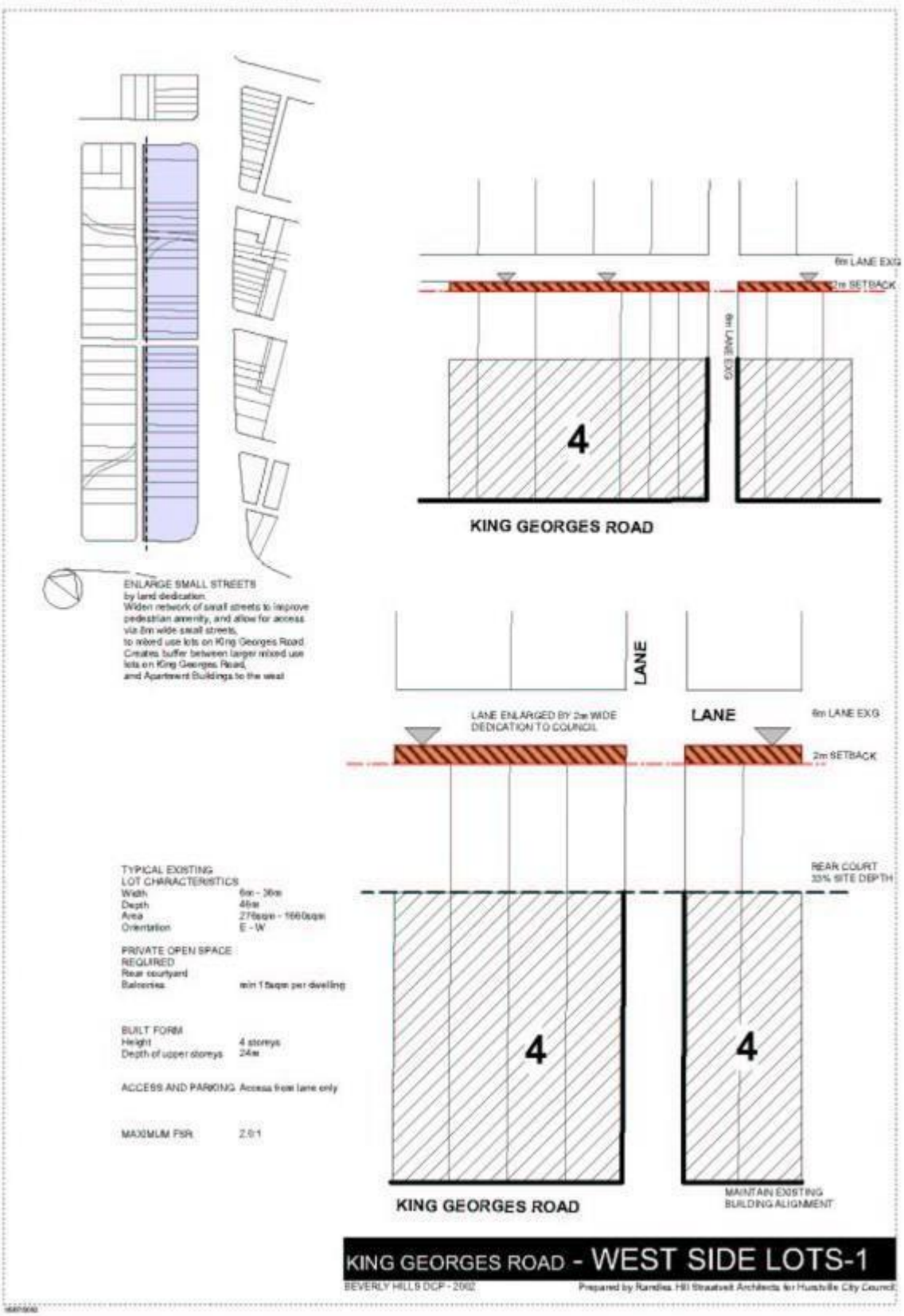


Figure 3: Control drawing 2

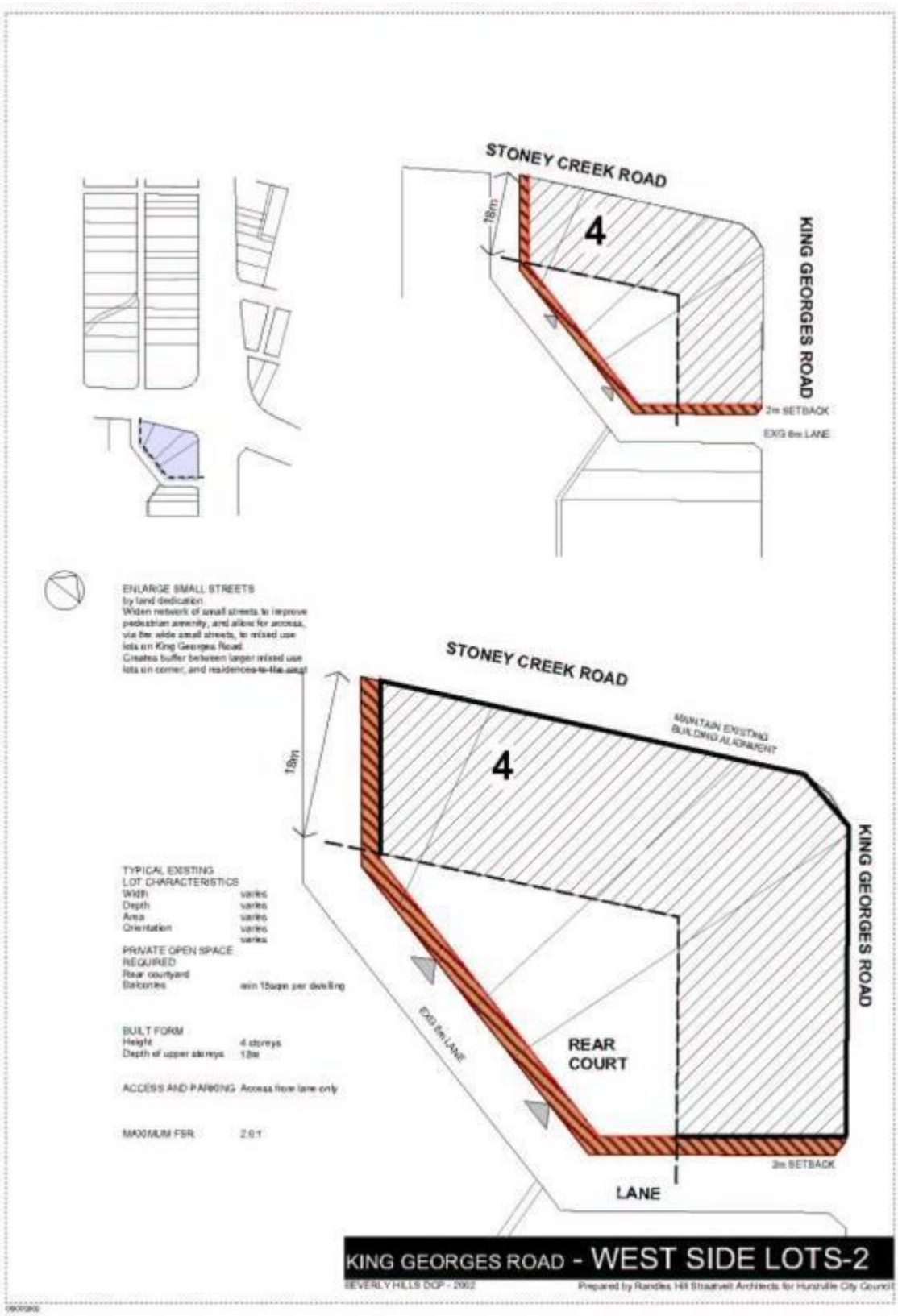


Figure 4: Control drawing 3

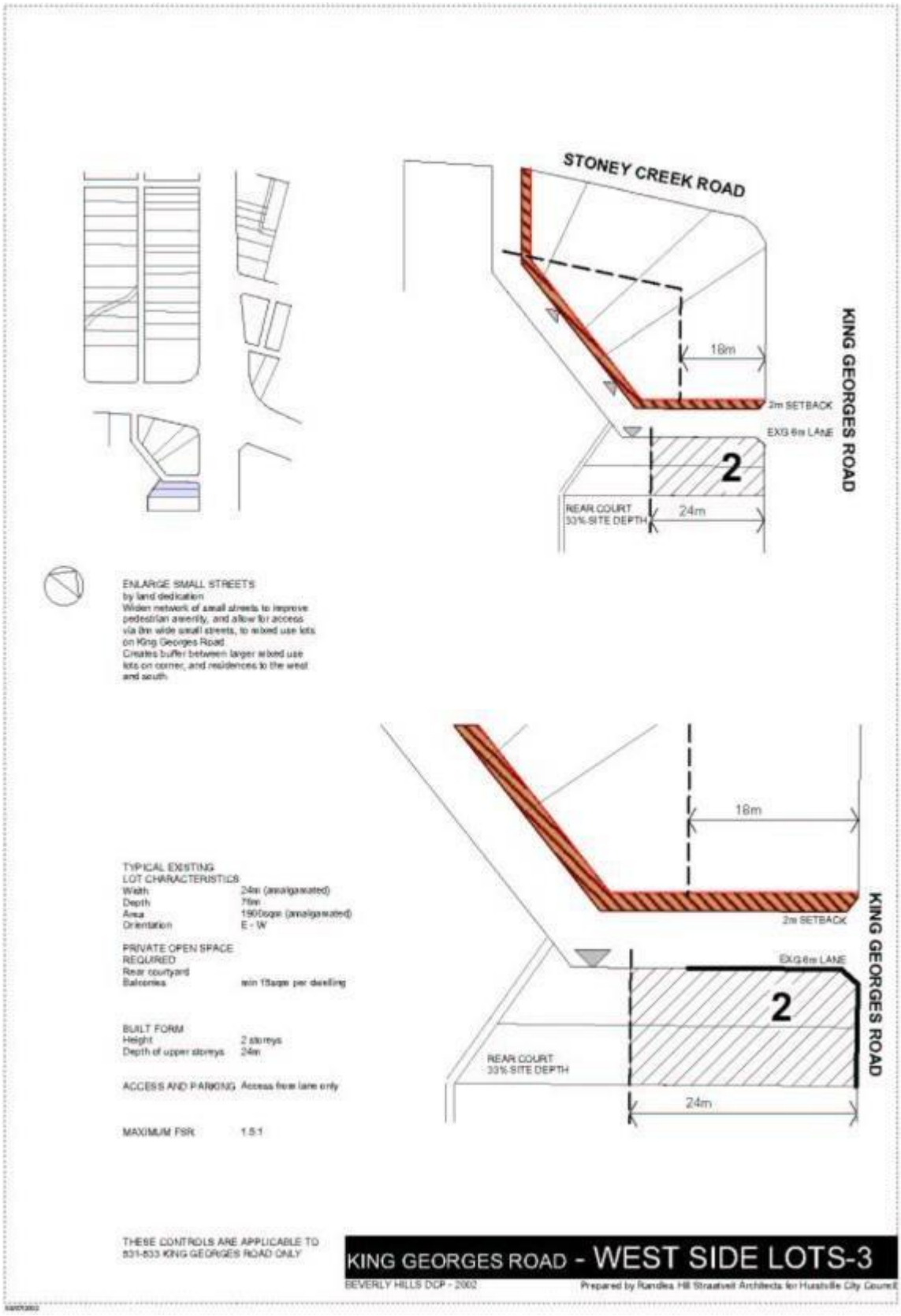


Figure 5: Control drawing 4

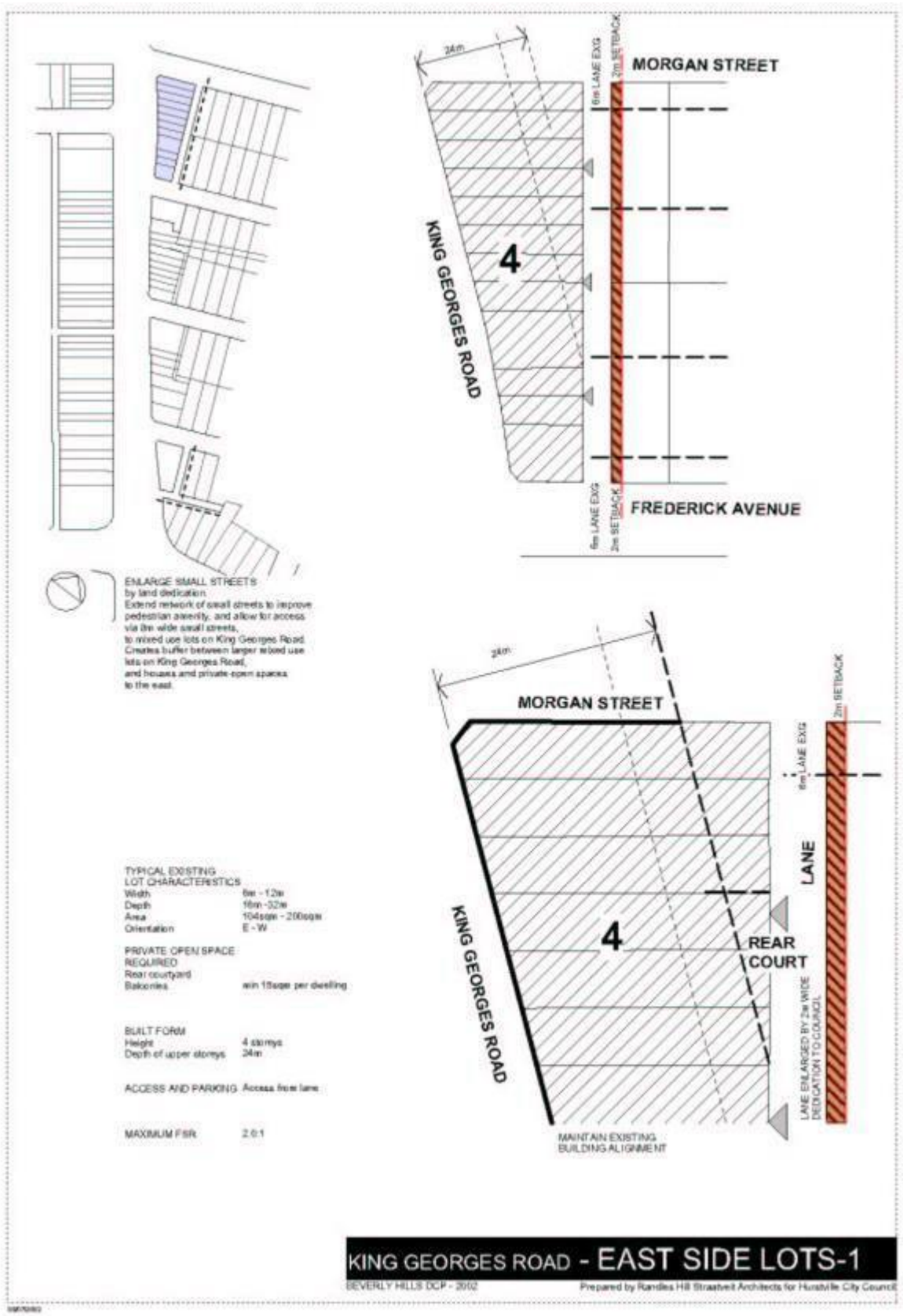


Figure 6: Control drawing 5

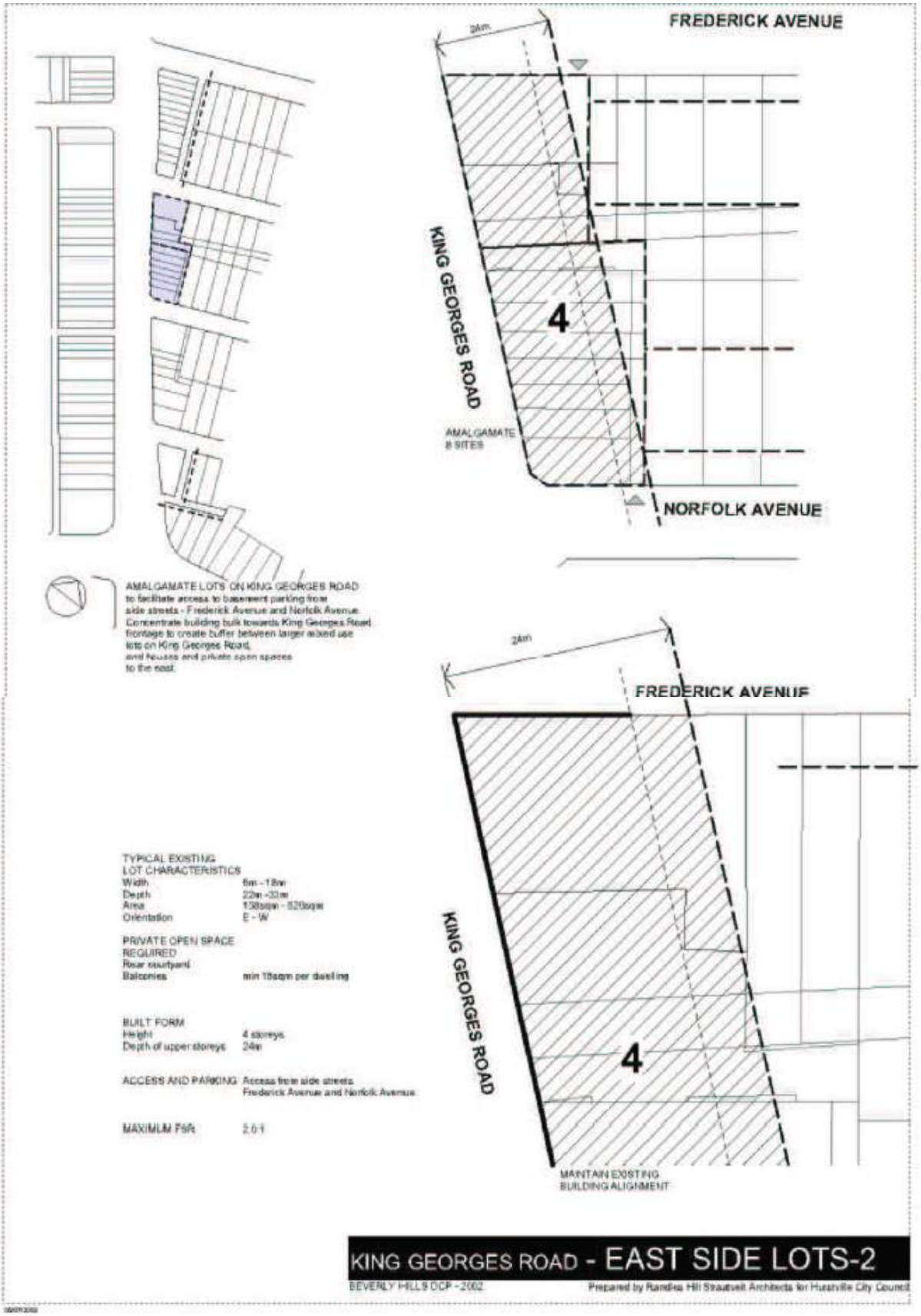


Figure 7: Control drawing 6

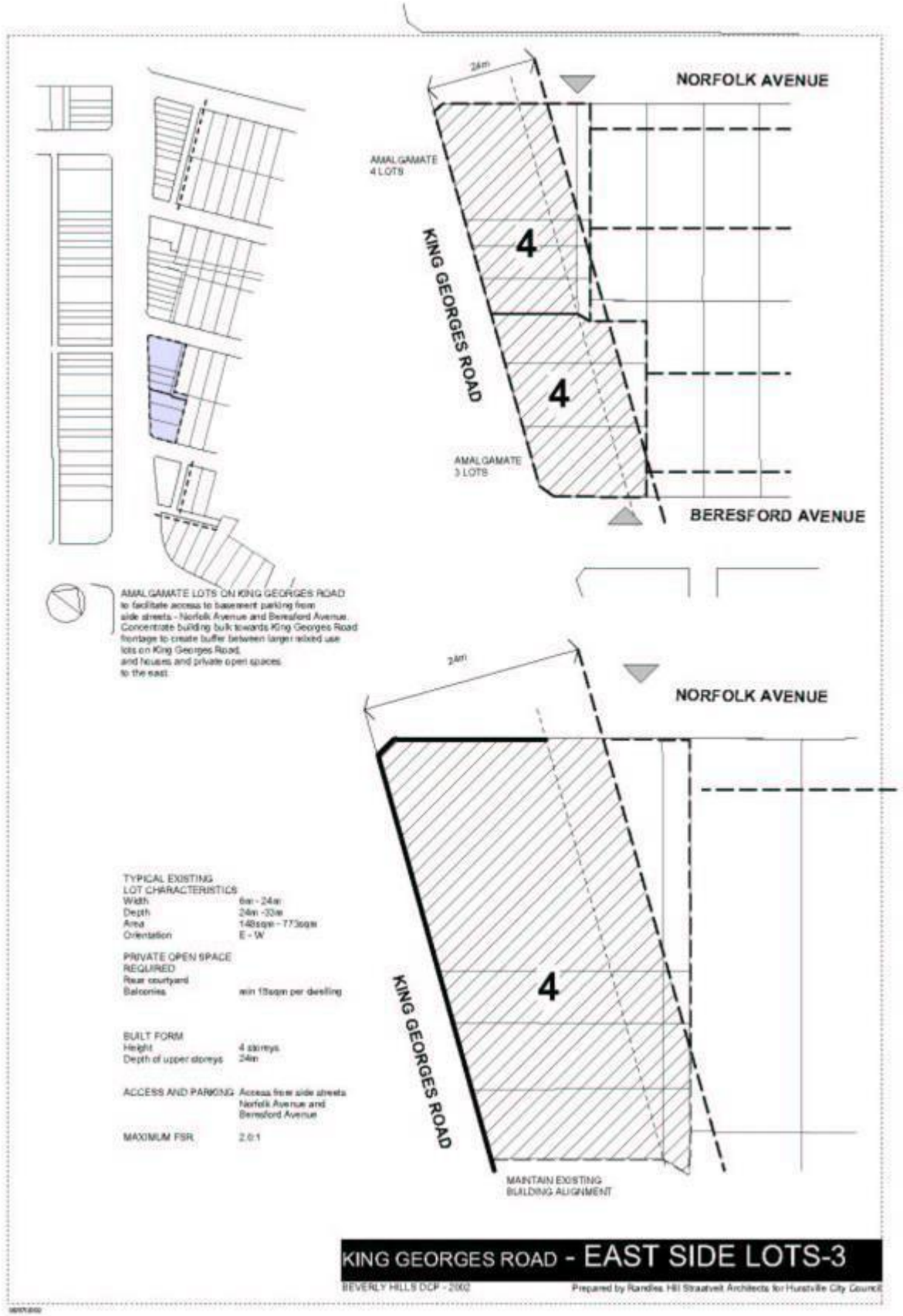


Figure 8: Control drawing 7

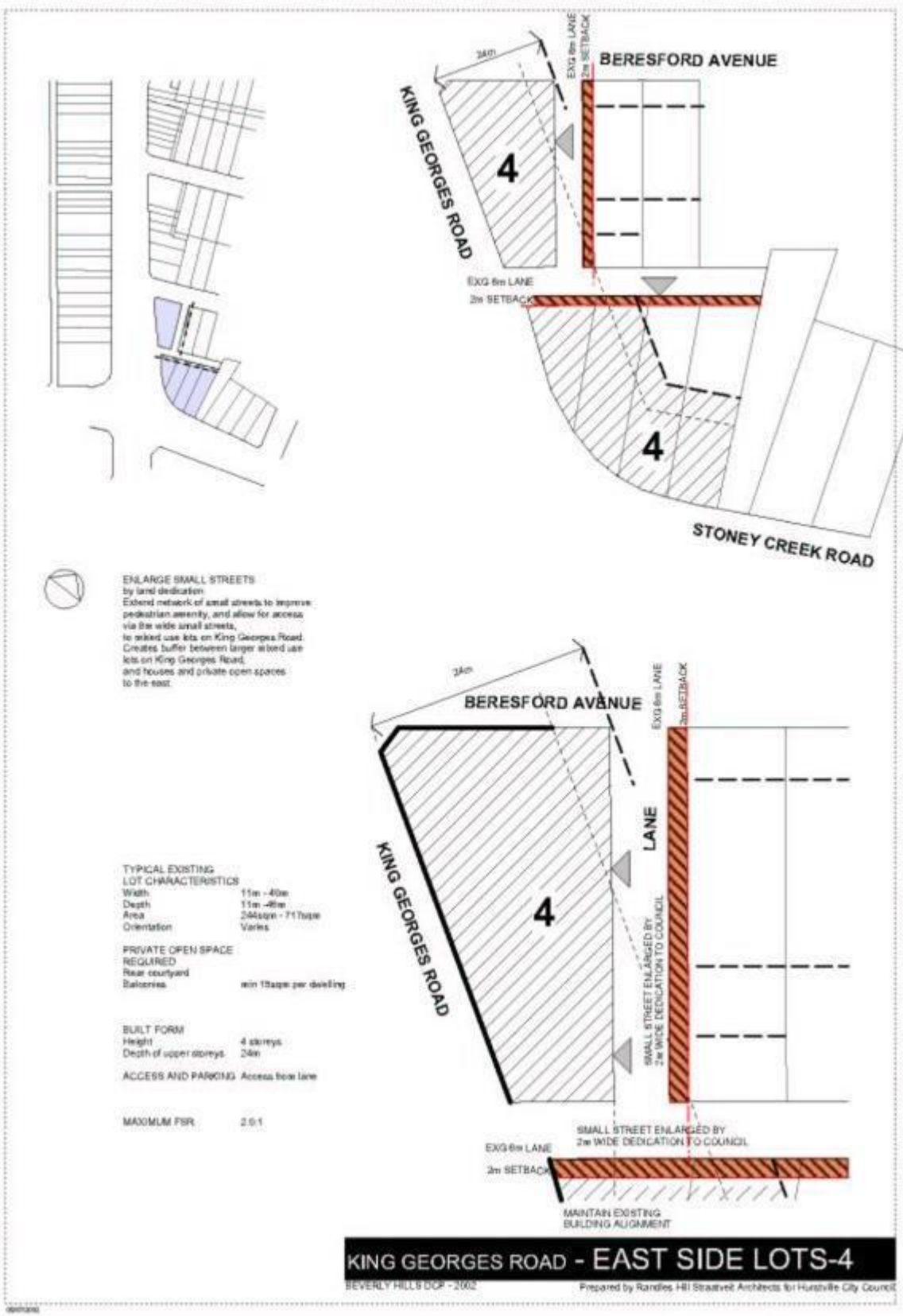


Figure 9: Control drawing 8

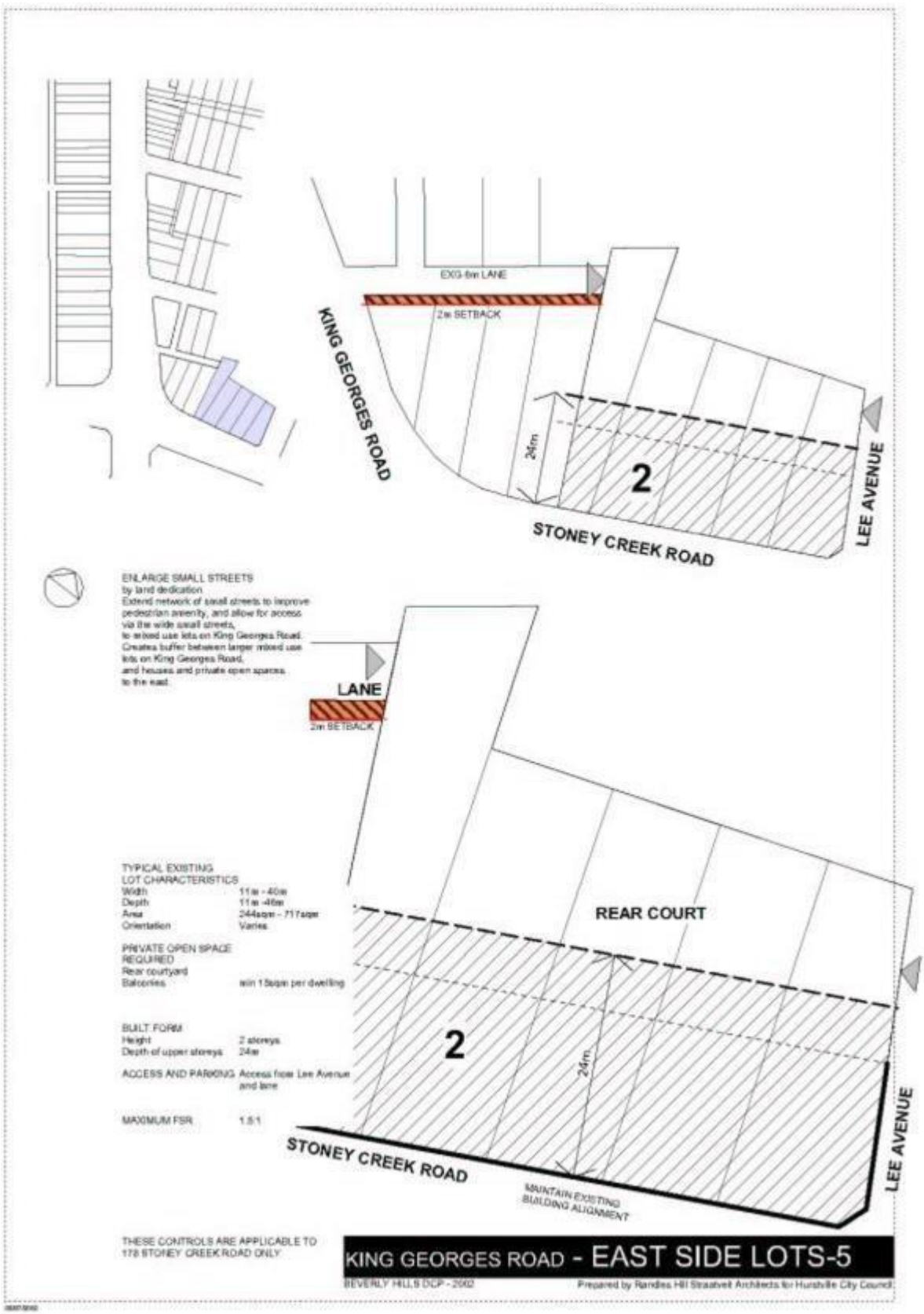


Figure 10: Control drawing 9

7.2.2 Blakehurst Local Centre (King Georges Road and Princes Highway)



Figure 11: Location Map

Existing Character

Blakehurst Centre is a shopping strip area along the Princes Highway at the major intersection with King Georges Road (Refer **Figure 11**). The centre is situated on the western side of the Princes Highway, opposite Todd Park and is dominated by fast moving traffic on a wide regional road. The mix of uses within the centre includes small service-type commercial uses together with specialist retail. There is a lack of food or supermarket outlets that might serve the local community.

Some residential accommodation is provided above ground level commercial. The built form is mixed in scale, form and presentation to the street and generally the centre lacks coherence and a sense of identity. The older shops are characteristic of a traditional retail strip. Setbacks and building heights vary, however recent mixed-use development introduces a six storey scale while maintaining the predominantly three storey street wall height.

The locality is difficult to access by traffic travelling south. Parking for some of the businesses is accessed from James Street, while a rear laneway between Stuart Street and James Street provides rear access to those properties. Apart from corner premises, the remaining

properties between James Street and Water Street have vehicular access from the Princes Highway.

Council previously considered creating rear lane access from the rear of No. 637 Princes Highway, to create rear lane access for the properties fronting Princes Highway, between James Street and Water Street. Part of this laneway has been created and is in the ownership of Georges River Council.

Desired Future Character

Blakehurst Centre's position on the Princes Highway creates opportunities for commercial uses to benefit from the high visibility of their location. The locality will retain a mix of retail, service and commercial uses serving the local and wider community, with all new development of a high design standard to reflect the Highway presence.

Residential development should be set well back from the Princes Highway and acoustically treated to ensure that future residents enjoy a high level of amenity. In this locality, it would be more appropriate that the upper levels of buildings support commercial functions, and as such buildings should be designed to encourage this outcome.

Building design also needs to be responsive to the residential development behind, particularly between James Street and Water Street, where there is no rear lane access.

New development should retain a three-storey street wall height to the Princes Highway, with upper storeys setback from the Princes Highway. The development needs to step back along the rear of sites, particularly between James Street and Water Street to provide a transition to residential developments at the rear.

Where new development turns the corner from the Princes Highway into side streets it should also be designed to make an appropriate transition in scale and massing to the adjoining residential areas. Vehicular access to sites should be from Stuart Street, via Stuart Lane (where the rear lane already exists). For 655-659 Princes Highway, the determined DA includes a condition to require a service lane - easement or right of way on title so future development can use the service lane at the rear for service vehicles and general vehicular access only. For the sites Nos. 645-649 Princes Highway, vehicular access from the Princes Highway may be the only acceptable solution, subject to approval from the Transport for NSW.

Objectives

a) Encourage economically viable redevelopment in accordance with the requirements of Georges River LEP 2021.

b) Encourage the continuation of active frontages to the street by promoting retail/ commercial/ service uses at ground floor.

c) Incorporate flexible building design to encourage commercial development on upper levels.

d) Encourage new development of a high design standard that is appropriate in scale and mass to its location along the Princes Highway.

e) Where development wraps around the corner to side streets, ensure that the design addresses the street frontage and provides a transition to the adjoining residential development.

f) Encourage access to parking areas from side streets and rights of ways to the rear of developments.

g) Encourage development to provide basement parking on large amalgamated sites.

h) Discourage the creation of rear lane access between Water Street and James Street.

Controls

Amalgamation

1. All sites are required to be amalgamated as shown in **Figure 12**:

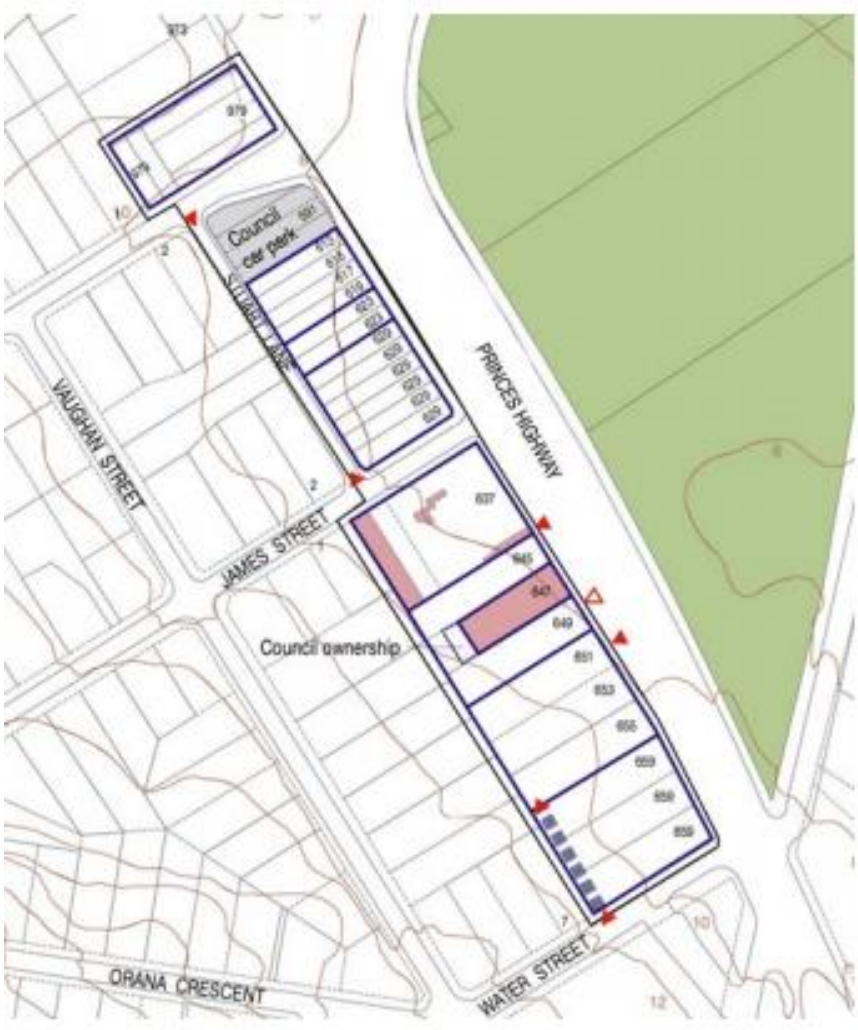


Figure 12: Site Amalgamation requirements

Vehicular Access

2. Vehicular Access to properties fronting Princes Highway between Stuart Street and James St should be obtained from Stuart Lane.
3. Vehicular Access to No. 659 Princes Highway is to be obtained from Water Street.
4. Vehicular Access to Nos. 645-655 Princes Highway is to be obtained from the Princes Highway upon re-development of the site, subject to approval from the RMS/TfNSW.
5. Any redevelopment of No. 659 Princes Highway should have a right of way covenant imposed to allow access from Water Street for any redevelopment of No 651-655 Princes Highway.

7.2.3 Carlton and Kogarah Bay Local Centre (Princes Highway)



Figure 13: Carlton Commercial Centre

Existing Character

Carlton Centre (refer to **Figure 13**) on Princes Highway is a shopping strip located on the north western side of the Princes Highway at the intersection of Park Road. The centre has high visual exposure due to its location on the Princes Highway and because the signalised intersection slows vehicular traffic.

Generally, the centre includes a mix of retailing, professional offices, service facilities, fast food/take away restaurant outlets and commercial uses, which generally serve the needs of the local and wider community. The centre contains a range of built forms and architectural styles reflecting the diversity of uses and the development of the centre over time. Building heights in this locality are generally one/two storeys, with some buildings having an overall height equivalent to a three-storey building, due to the higher floor to ceiling heights and parapet.

The centre includes a two storey building on the southern side of Park Road, which contains a mix of retail/service type uses. Parking for this development is situated to the rear of the development, in a car park owned by Council. This is accessed from Park Road.

Much of the development in the centre has made provision for off-street parking with a considerable number of businesses able to obtain access to that parking from a road other than Princes Highway.

Desired Future Character

The centre is expected to continue to provide a mix of retail, service and commercial outlets serving the local and wider community, with all new development of a high design standard to reflect the Highway presence.

New developments will be characterised by retaining a two-storey street wall height to the Princes Highway. Building heights in the centre should provide a transition to the existing low-density residential area at the rear.

Objectives

a) Provide high quality retail, commercial and residential development to serve the needs of the community.

b) Encourage the continuation of active frontages to the street by promoting retail/commercial/service uses at ground floor.

c) Improve the public domain through street planting, furniture and paving upgrades.

d) Ensure development is of a scale and design that retains the amenity of neighbouring residents.

Controls

Site Amalgamation

1. All sites are required to be amalgamated as shown below in **Figures 14 and 15**.

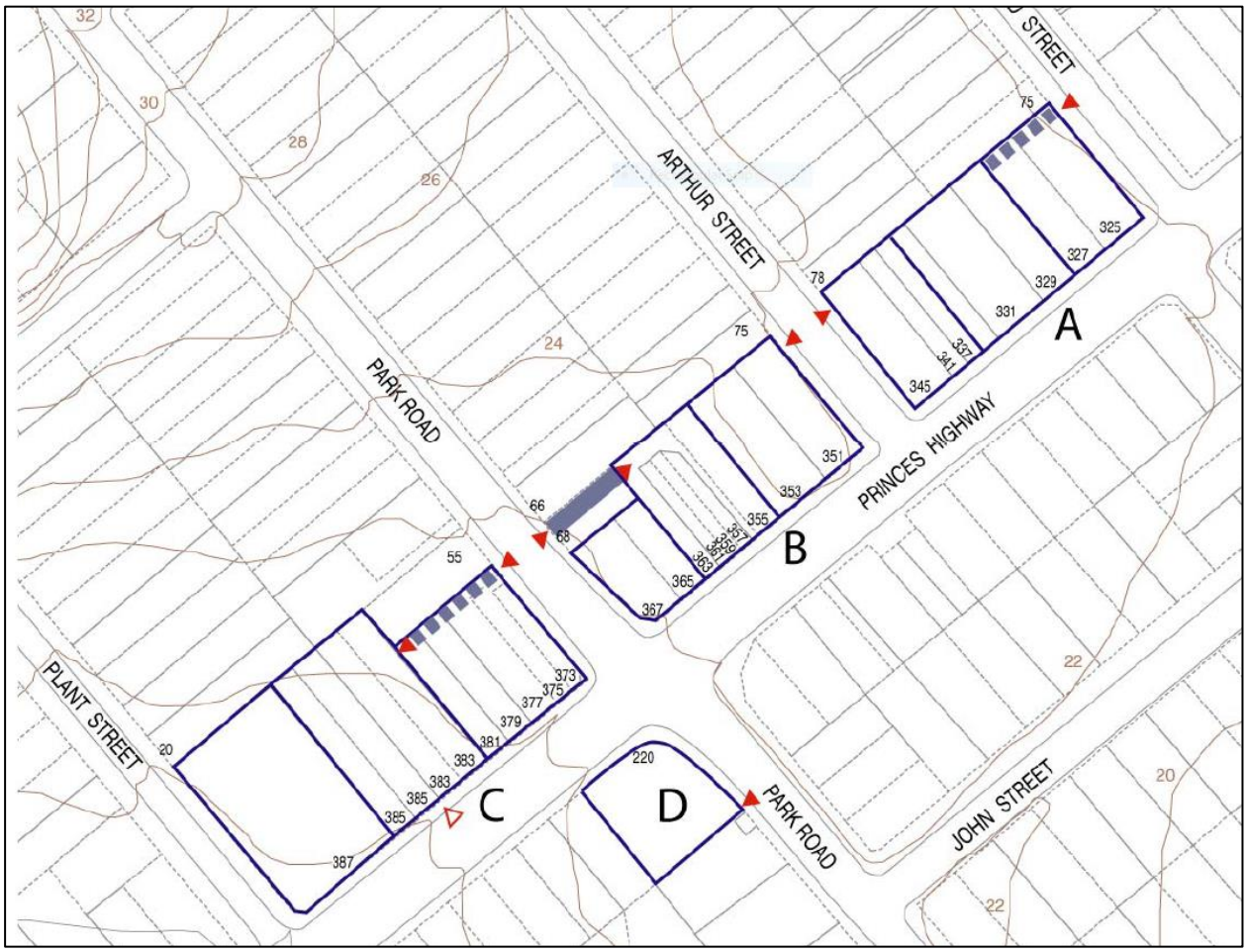


Figure 14: Amalgamation Requirements



Figure 15: Amalgamation Requirements

Parking and Vehicular Access

2. Vehicle access should be obtained from side streets and rear laneways.
3. Off-street parking to be provided for any new development underground or at the rear of the properties.
4. No part of the basement is to be elevated above ground level fronting Princes Highway.
5. Where a basement is provided this is not to protrude more than 1.0m above natural ground level.
6. Rear lane access is encouraged from secondary streets and is not required where entire block or half block is amalgamated and where no site is isolated/without vehicular access from secondary street.
7. Any redevelopment of No. 297 Princes Highway must provide vehicular access from Westbourne Street.
8. Vehicular access to No. 305-311 Princes Highway must be provided from Francis Street, via a minimum 6.0m right-of-way to be created with the redevelopment of these lots.
9. Access to the existing right of way behind No. 305-311 must be retained in any future development. Council will condition any redevelopment of No. 309-311 to ensure that the right of way is maintained at no cost to Council. This will also be applicable to No. 307 where this site is not amalgamated with No. 305 Princes Highway.

10. Vehicular access to Nos. 329-331 Princes Highway is to be from Edward Street via a right-of-way to be created with the redevelopment of Nos. 325-327 Princes Highway.
11. Vehicular access to Nos. 337-345 Princes Highway is to be from Arthur Street. If all of the sites are not amalgamated in accordance with Council's requirements, then Council will require a 6m dedication to the rear of the properties, upon re-development to provide vehicular access to the rear of all the sites.
12. Vehicular access to Nos. 355-363 Princes Highway is to be No. 68 Park Road (the existing Council owned laneway).
13. Where Nos. 355-363 Princes Highway are not amalgamated in accordance with Council's requirements, then Council will require a 6m dedication to the rear of the properties, upon redevelopment to provide vehicular access to the rear of all the sites.
14. Any re-development of No. 373 Princes Highway is to maintain vehicular access from Park Road.
15. Council may consider consolidated access via one (1) entry point to Nos. 383-387 Princes Highway, upon re-development of the site, subject to approval from the TfNSW.

Pedestrian Entry

16. From Princes Highway and side streets (where appropriate).

7.2.4 Kingsgrove Local Centre (Kingsgrove Road)



Figure 16: Location Map

Existing Character

Kingsgrove Road is the focus of the Centre which forms the boundary with Bayside Council, with the western side of the road being within Georges River LGA (Refer **Figure 16**). The Kingsgrove Road is generally characterised by a double storey retail/commercial development with a four story mixed use development beyond Mashman Avenue. The local centre is well served by public transport with Kingsgrove Railway Station and major bus routes and provides a broad range of retail and commercial services. The local centre is anchored by Woolworths located within the Pottery site, and supplemented by a broad range of retail and commercial services. There is significant residential within the precinct, mostly attributable to shop top housing within the Pottery development. In line with a number of other centres, car parking is an important issue impacting the development of additional retail.

The allotments to the north of the railway station (1-5 Commercial Road) are in a single consolidated ownership and consist of a 3 to 4 storey office development with no retail shopfronts These allotments are consistent with the subdivision pattern of its locality at Commercial Road adjoining the industrial area. The allotments on the southern side of the railway station are primarily in separate ownership. With the exception of the Pottery Site, the southern portion of the Centre features a fine grain quality, consisting of one and two storey older building stock attributed to the narrow subdivision pattern. These sites are serviced by a laneway to the rear and are physically separated from adjacent residential dwellings.

Desired Future Character

The Kingsgrove Local Centre is expected to maintain its viability and become an attractive centre through improvements to the public domain and the public/private interface. New development needs to be integrated with characteristic elements of the local shops as sites are consolidated and redeveloped.

The pedestrian environment will be attractive with awnings, active uses, street tree planting and furniture and paving upgrades. Mixed use development (which includes residential) will provide passive surveillance, resident interaction and address the street. Site consolidation and redevelopment will provide through-site pedestrian links or arcades that provide rear access to laneways and public car parking areas.

Objectives

a) Encourage high quality architectural design.

b) Improve the public domain through street planting, furniture and paving upgrades.

c) Provide high quality retail, commercial and residential development to serve the needs of the surrounding local community.

d) Ensure development is of a scale and design to maintain the amenity of neighbouring residents.

e) Ensure any future development provides active ground floor uses.

f) Provide open space and pedestrian links through redevelopment of sites.

Controls

Amalgamation

1. Consolidation and redevelopment of sites along Kingsgrove Road is encouraged. Such development will need to address the elevation to Mashman Lane as well as Kingsgrove Road.

Pottery Site

2. The Pottery development is to continue to provide pedestrian and cycle access connecting the eastern and western sides of Mashman Avenue.

3. The large area of open space in the centre of the Pottery development is to be retained as it provides a visual link between both sides of Mashman Avenue.

4. Any development within the Pottery Site is to comply with the *Conservation Management Plan Fred A Mashman Pty Ltd St George Pottery 11 Mashman Avenue Kingsgrove* dated February 2005.

Parking and Vehicular Access

5. Parking for the new development is to be accommodated underground.
6. Vehicle access for any redevelopment of a site fronting Kingsgrove Road from Morgan Street to Mashman Avenue is to be from Mashman Lane.
7. Redevelopment of No. 2 Patterson Avenue Kingsgrove (Lot 56/DP19078) is to include a 2.5m land strip to be dedicated to Council.

Through site links

8. Public through-site pedestrian accessways are to be provided connecting Kingsgrove Road to Mashman Lane.
9. The public through-site pedestrian accessway is to be a minimum of 8m wide.
10. All pedestrian links are to have appropriate levels of illumination. Separate and clearly distinguish between pedestrian accessways and vehicle accessways.
11. Pedestrian accessways are to have a minimum two storey height where they pass beneath a building.
12. Council may consider the relaxation of the above controls depending on the quality of public area provided and the merits of the particular application.

7.2.5 Oatley Local Centre (Frederick St)



Figure 17: Oatley Local Centre

Existing Character

Oatley centre retains an attractive village character due to the scale of development and the use of materials within it. The traditional 'main street' of the Oatley Commercial Centre is located on Frederick Street, which terminates at the railway station (see **Figure 17**).

The Oatley Commercial Centre accommodates a range of retail and commercial activities, which serve the needs of the local community. Service and community-related uses include banks, a Post Office and Oatley RSL Club.

There are also some commercial/retail uses situated on the periphery of the Oatley commercial centre, adjacent to Oatley Railway Station. These sites are known as No. 63 and No. 65 Railway Lands and current uses include a service station and a small group of shops.

The existing height and scale of development within the Oatley Commercial Centre is two (2) storeys. The development has high floor to ceiling heights and parapets, with active uses at ground floor and commercial above. Some residential development above the ground floor contributes to the diversity and liveliness of the locality.

The sloping topography has resulted in older buildings typically stepping down the slope, breaking up their massing on the streetscape. The traditional built form has resulted in a

strongly defined street edge along Frederick Street, with active frontages to the retail, breaking down in more recent developments to set back or internal courts edged by shops. Newer development in the centre does not respond as effectively to the changes in topography, which has resulted in buildings designed with entries ramped/stepped above the kerb line.

Vehicular access to the commercial development on the northern side of Frederick Street is provided to the rear, via Frederick Lane. Much of the parking within the centre is on-street, however there is also a Council car park situated on the northern side of Frederick Lane, with access from Letitia Street.

Development adjoining the centre is predominantly older style three-storey residential flat buildings.

Desired Future Character

The consistent low-scale built form and consistent use of materials that gives Oatley its village character; needs to be retained.

Given the location of the centre adjacent to a railway station together with the range of uses and facilities; encourages additional residential uses within the Oatley Centre. The locality has a mix of retail/commercial uses with residential development above ground floor.

On Frederick Street, buildings need to respond to the fall in topography and upper levels should provide a consistent frontage. Development along Frederick Street should incorporate awnings to provide a consistent streetscape and provide weather protection for users of the centre.

New development adjacent to the railway line needs to be constructed to a height and scale that is consistent with the rest of the Centre. In this regard, new development on land adjacent to the railway line needs to retain a two-storey street wall and incorporate materials and finishes consistent with the main shopping street. Where possible; vehicular access and off-street parking needs to be located to the rear of sites and/or at basement level.

Objectives

a) Retain the main street village character of the Oatley commercial centre through appropriate design and built form.

b) Provide consistency in design and materials to ensure that future development in the Centre maintains the village character.

c) Encourage the continuation of active frontages to the street by promoting retail/ commercial uses at ground floor.

d) Ensure that any re-development on sites adjacent to the railway station are consistent in scale with the remainder of the Oatley Commercial Centre.

e) Encourage residential development in the commercial centre core on upper levels to provide additional housing opportunities in the centre, close to the railway line.

f) Provide additional opportunities in the Centre for off-street parking to supplement existing parking.

Controls

Amalgamation

1. All sites are required to be amalgamated as shown below in **Figure 18**.

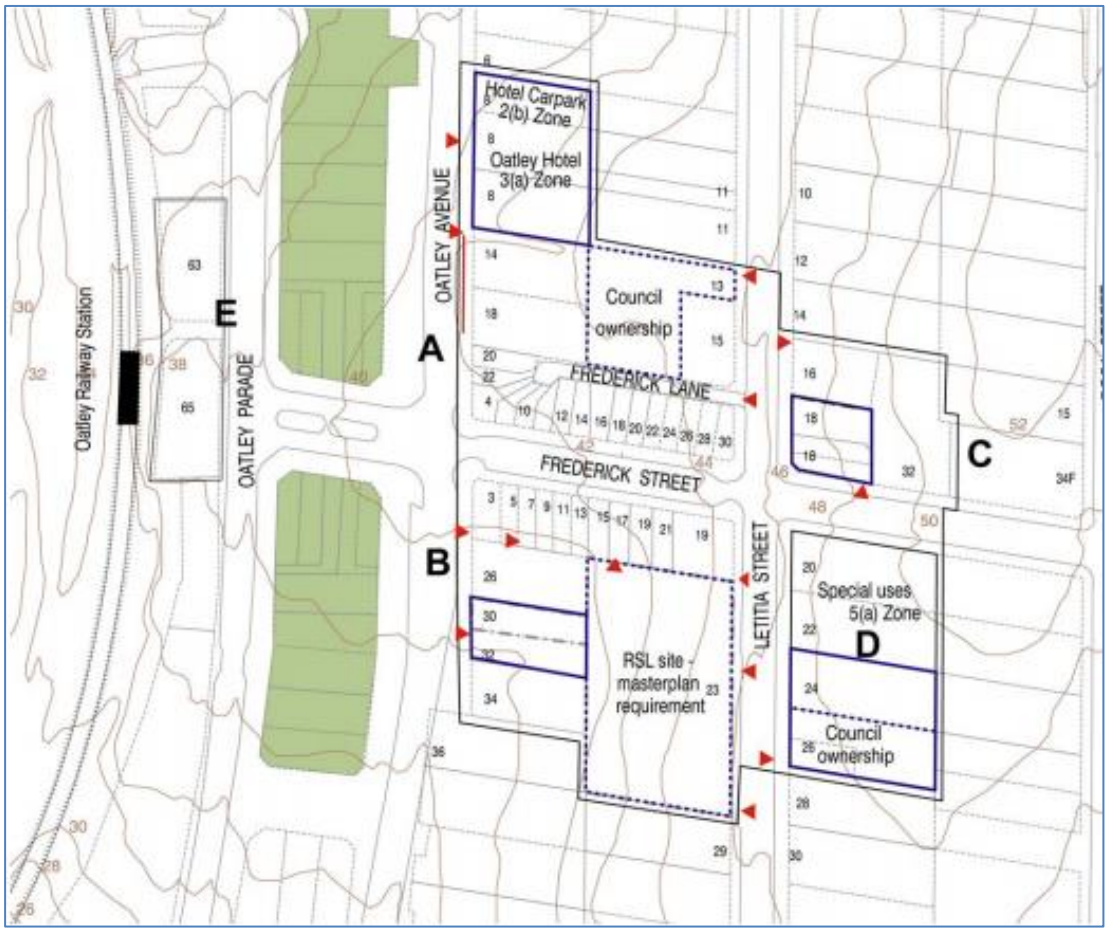


Figure 18: Amalgamation Plan

Vehicular Access

2. Vehicle access is to be obtained from side streets and Frederick Lane and from consolidated entries on Oatley Avenue where no other opportunities exist.

3. Vehicle access is not permitted on Frederick Street.

7.2.6 Ramsgate Centre Local Centre (Rocky Point Road)



Figure 19: Ramsgate Centre

Existing Character

Ramsgate centre is located along Rocky Point Road and is split between Georges River and Bayside Councils (**Figure 19**). The centre benefits from excellent exposure due to its frontage to Rocky Point Road and is served by bus services. A broad range of retail and commercial services are provided within the centre including the Intersection Tavern at the corner of Ramsgate and Rocky Point Roads. Recent mixed use developments, for example at the corner of Targo and Rocky Point Roads have created a significant portion of residential floor space in the form of a six storey development with retail/ commercial at the ground and residential use at the upper levels. On-site car parking is provided at the rear of the premises through an informal access easement. Car parking is an important issue impacting the development of additional retail. Medium and low density residential uses adjoin the Centre.

The allotments within the centre are in multiple ownership. The block between Ramsgate Road and Torwood Street has the Ramsgate car park laneway; separating the commercial zone from the residential use at the rear and providing access to the Ramsgate car park.

Desired Future Character

The Ramsgate Centre will maintain its viability and become an attractive centre through improvements to the public domain and the public/private interface. New development needs

to be integrated with characteristic elements of the local shops as sites are consolidated and redeveloped. New development will be integrated with the surrounding environment by considering pedestrian, bicycle, vehicle and visual links to the street and open space networks and provide adequate parking, drainage, services and facilities.

Reinforce the strong linear element of Rocky Point Road by generally encouraging a 4 storey street wall to define the street line. The pedestrian environment will be attractive with awnings, active uses, street tree planting, furniture and paving upgrades and minimisation of overhead wires on significant streets. Mixed use development (which includes residential) will provide passive surveillance and active street frontages that address the street. Site consolidation and redevelopment will provide through-site pedestrian links or arcades that connect Rocky Point Road to the rear streets and public car parking areas. These laneways are wide enough to accommodate a small number of coffee tables, as a pedestrian/shopping refuge from the noise of Rocky Point Road. Buildings will be orientated and sited to maximise northern sunlight to internal living and working areas and take advantage of potential views from the centre.

Objectives

a) Promote high architectural quality in buildings.

b) Improve the public domain through street planting, furniture and paving upgrades.

c) Provide high quality retail, commercial and residential development to serve the needs of the surrounding local community.

d) Ensure that the development is of a scale and design that protects the amenity of neighbouring residential areas.

e) Ensure any future development provides active ground floor uses.

f) Provide open space and pedestrian links through redevelopment of sites.

g) Encourage site amalgamations for facilitating appropriate development.

h) Enhance opportunities for pedestrians and cyclists to move safely within the public domain.

Controls

Amalgamation

1. Consolidation and redevelopment of sites along Rocky Point Road is encouraged (Refer **Figure 20**). The heritage items within the Centre need to be considered as an integral part of any future proposed development. Refer to Section 7.1.9 of this DCP in relation to Site Isolation and Amalgamation requirements.

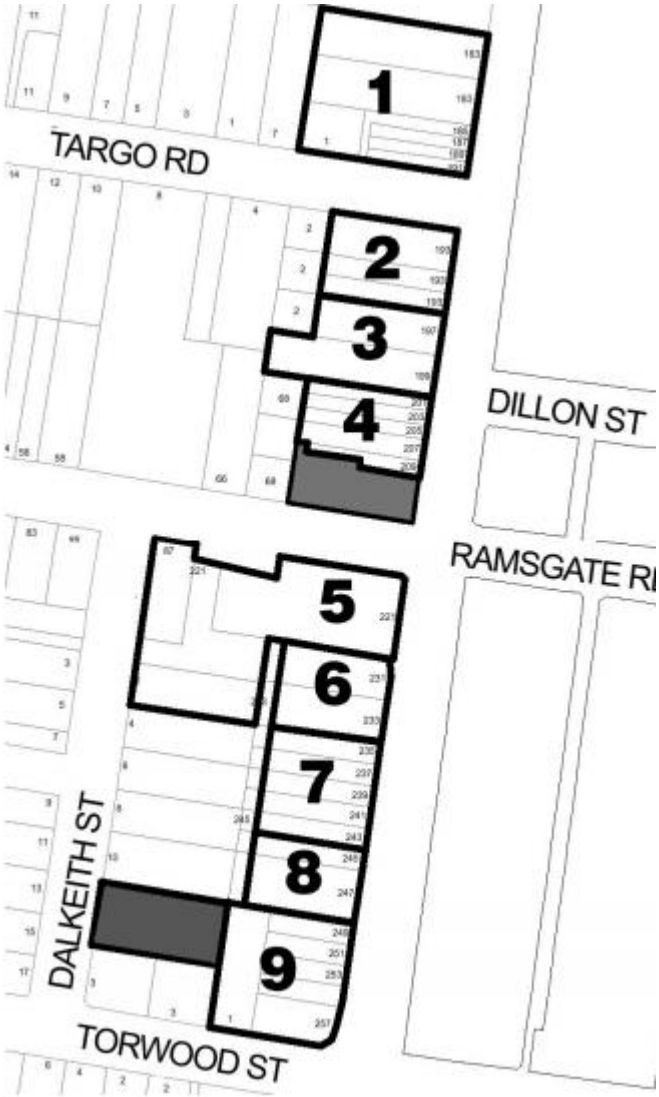


Figure 20: Site Amalgamation Requirements

Temporary Access ways

2. A key feature of ensuring the success of the centre is the creation of laneways to provide service access to the rear of the Rocky Point Road frontage. Because of the multiple land ownerships involved, it will be difficult to facilitate an appropriately phased implementation process. Developments must therefore be able to go ahead without the completion of the full laneway (Refer **Figure 21**).
3. Where temporary access is proposed from Rocky Point Road, it is envisaged that developments will either provide a temporary ramp from Rocky Point Road to their basement car parking area, or create a temporary access-way to the laneway dedication at the rear of the property.
4. These temporary access ways can ultimately be converted into either retail/commercial floor space or car parking. Where temporary access ways are provided, the area

identified as the temporary access way (which may at a later stage be transferred to floor area) is to be included in the floor space calculations.

5. In designing a development with temporary access, it is important that the façade design to Rocky Point Road caters for this temporary access and encourages the sharing of temporary access ways.

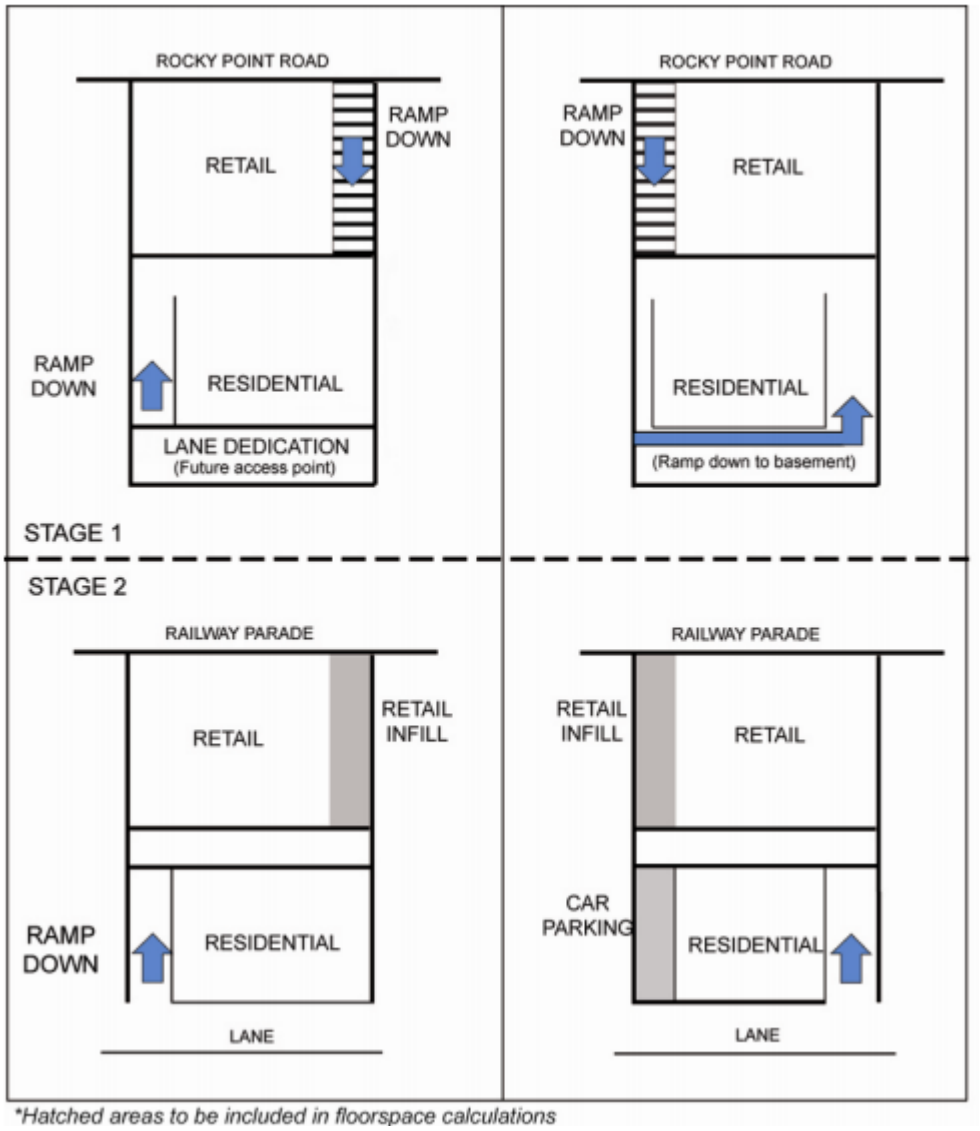


Figure 21: Example of a temporary accessways

Rear lanes

6. New rear lanes should be introduced where appropriate to buffer existing low scale residential development from higher, denser mixed use developments. In particular, there is potential for:

    i. Providing rear lane access for the properties fronting Rocky Point Road, between Targo Road and Ramsgate Road and continuing the rear lane access between Ramsgate Road and Torwood Street.

ii. Rear lane access between Targo Road and Ramsgate Road and Torwood Street is to be a one-way movement (southern direction) to facilitate easy movement onto Rocky Point Road and discourage movement back onto the residential (side) streets. This will be supported with traffic calming measures.

iii. Provide a minimum 5m wide rear lane between Targo and Ramsgate Road.

iv. Provide a minimum 5m wide rear lane behind Nos. 249-257 Rocky Point Road and No.1 Torwood St.

Parking and Vehicular Access

7. Encourage the use of public transport and ensure that any parking for new development is to be accommodated underground; with full retention or replacement of existing publicly owned car spaces.
8. Vehicle access for any redevelopment of a site fronting Rocky Point Road to be consolidated.

Site specific

Drainage easement requirements for Nos. 197-199 Rocky Point Road

a) A 1.5m drainage easement is to be provided at cost to the developer to drain water from the proposed laneway to Rocky Point Road.

b) The easement shall be created in favour of Kogarah Council and the Construction Certificate cannot be issued until the easement has been prepared by a Registered Surveyor and has been lodged with the Land Titles Office for registration.

c) Access to the easement and the piped system shall be provided. For commercial and residential buildings the applicant shall demonstrate to Council's satisfaction that suitable access for maintenance and/or replacement of the piped system can be achieved. Additional conditions will be placed on any development consent for the site to ensure that the easement is provided and suitably maintained.

7.2.7 Riverwood Local Centre (Belmore Road)



Figure 22: Riverwood Town Centre

Existing Character

Belmore Road Riverwood (refer to **Figure 22**) is considered the strongest local centre in Georges River, particularly in terms of providing local retail services to meet the daily and weekly needs of its residential catchment. Vacancy rates are low and the commercial rents are currently affordable.

The major asset in the Local Centre is the Riverwood Plaza Shopping Centre, anchored by Coles, Woolworths and Aldi supermarkets. However the centre suffers from competition from the stronger performing Roselands Shopping Centre (60,000sqm retail floor space) which has just been expanded and refurbished.

Riverwood precinct provides the greatest employment provision of any of the E1 Local Centres. Considering its size the precinct provides a moderate level of residential attributable to mixed use developments and some shop top housing.

The centre generally consists of one and two storey older building stock with a recent 5 storey shop top development. The majority of shops are built on narrow lots but there are some larger sites such as Riverwood Plaza Shopping Centre. The centre is physically divided in two by Riverwood station and the bridge over the railway line. The north-south axis of Belmore Road combined with low scale buildings provides the centre with good natural

light throughout the day. There is good pedestrian amenity and comfort with wide footpaths, consistent paving, and street landscaping.

The centre offers good exposure from passing foot and vehicle traffic from within the Riverwood town centre. In line with a number of other centres, car parking is an important issue impacting the development of additional retail. Residential densification in the broader area would support greater retail demand.

Generally high demand for residential uses exists. Additionally, some reasonable development potential exists within large sites (including council car parks). Permitting greater residential yields leverages off the existing rail infrastructure and provides the opportunity and incentive for landowners to provide developments that provide greater amenity while maintaining, and likely improving the retail offering.

There is limited employment generating uses outside retailing, personal services and small business services, as well as limited dining options.

Riverwood Precinct Investigation Area

Riverwood Local Centre is contained within the Riverwood Precinct Investigation Area. The boundary of the precinct is illustrated by the black line in **Figure 23** below.

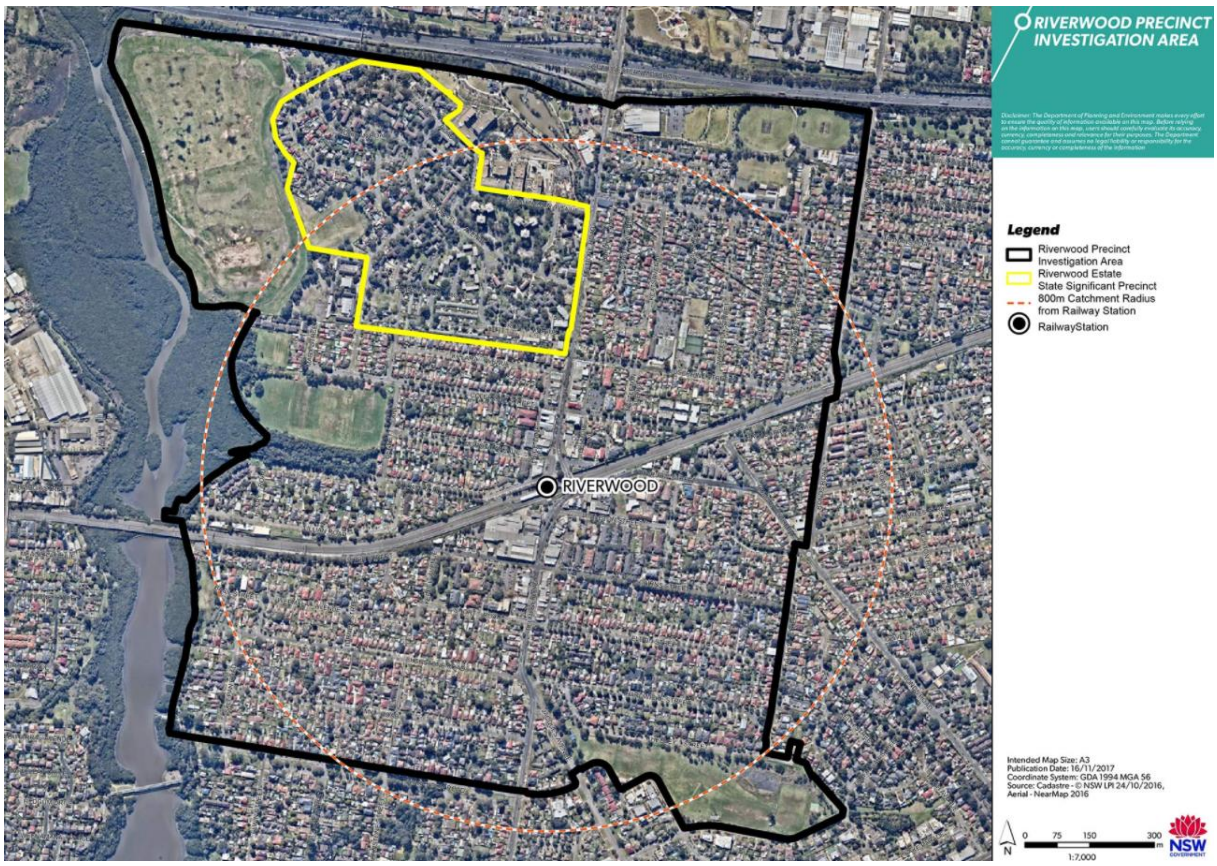


Figure 23: Boundary of the Priority Precinct

The planning for this wider Precinct will ensure that planning for this area is coordinated by the NSW State Government, Georges River Council and Canterbury/Bankstown Council.

Infrastructure such as schools, parks, community facilities, public transport and road upgrades will also be delivered within the Precinct to support the future community needs.

Riverwood Estate State Significant Precinct

The Riverwood Precinct Investigation Area is separate from the State Significant Precinct (SSP) for the Riverwood Social Housing Estate. The Riverwood Estate Social Housing Estate is located within the Canterbury-Bankstown LGA. The boundary of the Estate is illustrated by the yellow line in **Figure 23** above.

The Riverwood Estate currently has 994 social housing dwellings on over 30 hectares of government-owned land. In late 2019, the Minister for Planning and Public Spaces announced a new approach to precinct planning in NSW. This included a change of approach to planning for Riverwood Estate.

In collaboration with Land and Housing Corporation (LAHC), City of Canterbury Bankstown will now take the lead in planning for Riverwood Estate.

Desired Future Character

Riverwood has developed into a vibrant and attractive centre catering to the diverse needs of its community. An integration of appropriate retail and commercial development needs to be encouraged with housing, improving street surveillance and after hour activity. Significant improvements to the public domain and the public/private interface with awnings, active uses, street tree planting and furniture and paving upgrades will create a vibrant centre. Mixed use development (which includes residential) will provide passive surveillance and resident interaction. Site consolidation and redevelopment will provide through-site pedestrian links or arcades that provide rear access to laneways and public car parking areas.

Belmore Road is the focus of the Riverwood Centre through the:

- Promotion of a co-ordinated verandah for the entire road frontage in the Centre
- Limiting individual retail frontage
- Fostering an improved mix of uses
- Retaining the important role of public transport
- Enhancing pedestrian amenity
- Provision for commercial and residential development of an appropriate scale and mass
- Creation of a memorable identity through the provision of verandahs for each building along the entire road
- Establishment of building depth controls to ensure high quality building and external spaces, including verandahs.

Objectives

a) Promote high quality architectural design.

b) Ensure that the development is of a scale and design with a consistent streetscape, compatibility of building form, and a high level of environmental amenity.

c) Improve the public domain through street planting, furniture and paving upgrades.

d) Provide high quality retail, commercial and residential development to serve the needs of the surrounding local community.

e) Ensure any future development provides active ground floor uses.

f) Provide open space and pedestrian links through redevelopment of sites.

Controls

Amalgamation

1. Maximum street frontage for individual commercial sites along Belmore Road is 25m.

Setbacks

2. Development along Belmore Road that has dual access to rear laneway is required to provide a 1m setback to the laneway. This 1m setback is required to be dedicated to Council to allow for lane widening to improve pedestrian amenity and traffic management.

Verandahs

3. Verandahs can extend from the first storey to the third storey of a building and are not permitted on the fourth storey.
4. Verandah design must conform to uniform building and verandah alignments, internal verandah divisions, heights, materials and balustrading.
5. Verandah enclosure will only be permitted through the use of shutters integrated with the design of the building. Enclosure by glass will not be permitted.
6. Base plates for the verandah must not protrude above footpath level.
7. Verandah levels must fall to the building and all stormwater down pipes must be recessed into the building façade.
8. The provision and operating cost of verandah lighting is the responsibility of the building owner. Lighting is to be recessed into the underside frame of the verandah or wall mounted on the building.
9. Canvas blinds along the outer edge of verandahs at street level can be used to provide sun shading to the east and west facades.

Through Block connections

10. Arcades should be located in mid-block locations and provide a clear sightline from one end to the other, for surveillance and accessibility.

11. Arcades are to have a minimum width of 3m, clear of any obstruction, except for connections through shops.
12. Retail frontages are to be maximised along arcades.
13. Natural lighting and ventilation of arcades is highly desirable.
14. Pedestrian safety and the security of adjacent businesses, particularly at night, should be considered in the design of through block connections.
15. Public use of through block connections is to be available at least between the hours of 6.00am and 10pm daily.
16. Arcades must have a minimum floor to ceiling height of 4m.
17. Council may consider the relaxation of the above controls depending on the quality of public area provided and the merits of the particular application.

Shop fronts

18. Shop fronts must be glazed.
19. Solid roller shutter doors of any kind are not permitted on shop fronts. Council may consider an open grill design where warranted for security purposes.

Landscaping and Open space

20. Lower level rooftop areas and courtyards in the centre of blocks are to be landscaped.
21. A minimum of 600 mm of soil is to be provided above basement structures for landscaping.
22. Where direct access to ground level private open space is not available, provide at least one balcony, terrace, verandah, or deck for each dwelling.
23. The primary above ground open space area should be accessible from a family room, lounge, dining room or kitchen, and be predominantly north, east or west facing, to ensure it is useable as an outdoor living space.
24. Smaller secondary above ground open space area are also encouraged, such as balconies adjacent bedrooms, screened external clothes drying balconies adjacent laundries and bathrooms.
25. Above ground open space should overlook the street or rear garden to protect the privacy of occupants and neighbours.
26. Street footpaths are to be finished in accordance with Council's requirements.

Vehicular access and loading dock

27. Belmore Road can not to be used to provide vehicular access to a site.
28. Car parking and loading dock provision is to comply with Section 3.13 - Parking, Access and Transport of this DCP.
29. Vehicular access is to be from existing crossings or from rear lanes/streets.

7.2.8 Enterprise Corridor (Princes Highway, Carlton)



Figure 24: Enterprise Corridor, Carlton

Introduction

This section applies to the Enterprise Corridor located along the Princes Highway corridor in Carlton between Carlton Local Centre and Kogarah Town Centre (**Figure 24**), formerly zoned B6 Enterprise Corridor prior to 26 April 2023. This section of the DCP should be read in conjunction with Section 7.1 - General Commercial Controls. Where any inconsistency exists, the controls in this section will prevail.

Existing buildings are of varied architectural form and style and generally range from one to two storeys in height. Princes Highway is a major arterial road which significantly compromises the amenity of the area, particularly for any residential component of development. Appropriate building design, construction and internal layout can reduce traffic effects on occupants. The Princes Highway Corridor aims to encourage opportunities for business and retail development that are suited to high exposure locations while ensuring that the Carlton Local Centre and Kogarah Town Centre remain the focus for business and retail activity.

The purpose of this zone is to promote businesses along main roads and encourage a mix of compatible business, office, light industrial and some residential uses while reinforcing the corridor as a commercial/ employment precinct.

Desired Future Character

This location allows businesses to benefit from high visibility and good access to public transport and is intended to provide lower cost employment and business start–up opportunities and buffer residential land from high traffic volumes.

The built form in this zone requires a large floor plate capable of accommodating a range of employment uses, to be provided at ground floor with residential development above stepped up and away from the Highway frontage.

These design controls aim to ensure that new development provides separation from the existing residential development to the rear and will provide for a street wall fronting the Princes Highway, with residential above stepping down to the west away from the Highway frontage.

Objectives

a) Ensure development is flexible, adaptable and robust enough to cater for a variety of future light industrial, business uses and residential uses.

b) Ensure the environmental and streetscape amenity of surrounding streets and adjoining properties is protected.

c) Provide increased building separation where there is a transition to a lower density residential zone or a heritage item.

d) Ensure development can cater for service vehicles without adverse impact on the ingress and egress of building users or the existing traffic network.

e) Avoid retail uses (other than those permitted under the LEP) along the Princes Highway Enterprise corridor and to ensure separation of the Carlton and Kogarah centres.

Controls

Building Siting and Layout

1. Development must respond to topography, views and sight lines.
2. Avoid vehicular access to properties from Princes Highway. Provide vehicular access to properties from secondary roads and rear lanes. The location and means of access to customer car parking should be clearly visible to passing motorists.
3. Developments are to avoid locating vehicle driveways adjoining residential zoned properties without a landscape buffer or suitable acoustic insulated fence. Loading docks must be enclosed to minimise noise and amenity impacts.
4. Building layout must avoid any potential for overlooking or overshadowing of adjoining residential zoned properties.
5. Developments must locate any potential noise sources away from any adjoining residential uses.

Building Form and Design

6. Encourage development that is compatible with the existing streetscape and future scale of the adjoining area.
7. Encourage buildings that are appropriate to the local context including massing, bulk, scale and façade detail.
8. Encourage interesting and diverse roof design that reflects the local character and context.
9. Building elements such as windows, doors, recessed walls and other architectural features should be used to minimise large expanses of blank walls and glazed areas.
10. Encourage suitable design and construction of buildings to minimise noise and amenity impacts arising from proximity to the Princes Highway.
11. For sites adjoining residential uses, encourage appropriate setbacks and building design to minimise overshadowing and overlooking.
12. Encourage opportunities for deep soil planting areas at Princes Highway. Planting is to soften the built form.
13. The façade modelling of a development should utilise large expressed elements to relate to passing motorists and articulate the key components of the building such as entries, showrooms and the like. Finer detail expressing environmental control, individual tenancies and building levels should be used to add richness to the architectural design.
14. Signage must be integrated into the overall façade design.
15. Sun shading is to be provided appropriate to orientation for glazed portions of the facade.
16. Showrooms are to have a minimum floor to ceiling height of 4.0m and preferably higher.

Side Boundary Setbacks

17. Zero side setbacks are permissible along Princes Highway frontage where adjoining E1 zoned land.

Rear Boundary Setbacks

18. Minimum 6m setback from a rear boundary between ground floor level and up to four storeys.
19. Upper level setbacks are 9m above four storeys.
20. Side and rear boundary setbacks adjacent to a lower density residential zone for the purposes of visual separation, privacy and transition:
    i. Minimum setback of 9m from the boundary between ground level and up to four storeys.
    ii. Upper level setbacks are 12m above four storeys.

    Note: A reduced side or rear setback may be permitted where permitted by Part 3F of the NSW State Government's Apartment Design Guide.

Note: Private open space and balconies must comply with part 4E of the NSW State Government's Apartment Design Guide.

Public Domain Interface

21. Encourage improved pedestrian amenity and vibrancy of the area through landscaping and interesting and/or active street level uses.
22. Encourage landscaping within rear setbacks and street trees along Princes Highway.
23. Car parking should preferably be located:
    a. At the rear of building away from the street frontage.
    b. Behind the front building line.
    c. Within a basement car parking structure.